PARTICULARS AND CONDITIONS OF SALE OF REAL ESTATE BY TENDER

This form is approved by The Law Association of New Zealand Inc. and by the Real Estate Institute of New Zealand Inc.

TENDER DETAILS

Closing Date and Time:

Delivery Address for Tenders: Colliers Matamata, 3/25 Tainui Street, Matamata

Licensed Real Estate Agent acting for Vendor: Clint Brereton, Warwick Searle (Forestry Sales Limited) James Burke (Forestry Sales Limited)

Salesperson(s) : Clinton Brereton (027 897 1161) clint.brereton@colliers.com

Vendor: Raymond Charles Nicklin as to 1/2 share and Desma Elizabeth Nicklin as to a 1/2 share

The vendor is registered under the GST Act in respect of this transaction and/or will be so registered at settlement: **Yes/~~No~~**
If "Yes", Schedule 1 must be completed by the parties.

Purchase price allocation (PPA) is relevant to the parties for income tax and/or GST purposes: **Vendor: Yes/~~No~~**
If both parties answer "Yes", use of the PPA addendum for this agreement is recommended. **Purchaser/Purchaser's Nominee: Yes/~~No~~**

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PROPERTY

Address: 77 Remiger Road, Puhoi, Auckland City

Estate: **FREEHOLD** **~~LEASEHOLD~~** **~~STRATUM IN FREEHOLD~~**
~~STRATUM IN LEASEHOLD~~ **~~CROSS LEASE (FREEHOLD)~~** **~~CROSS LEASE (LEASEHOLD)~~**

If none of the above are deleted, the estate being sold is the first option of freehold.

Legal Description:

Area (more or less):	*Lot/Flat/Unit:*	*DP:*	*Record of Title (unique identifier):*
299.75	see below	see below	see below

Lot 6 Deposited Plan 598139, CT 1159734, Lot 9 Deposited Plan 541977, CT 974873, Lot 1 Deposited Plan 179794, CT NA105B/748, Allotment 29, 32, 35 Parish of Puhoi and Part Allotment 28, 30-31 Parish of Puhoi, CT NA2100/21, Allotment 54A Parish of Puhoi, CT NA31C/965, Part Allotment 36 Parish of Puhoi. CT NA757/204

TENANCIES

Yes/~~No~~

Particulars of any tenancies are set out in Schedule 3 or another schedule attached to this agreement by the parties.

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1.0 CONDITIONS OF SALE

1.1 The property and the chattels included in the sale are sold on these Particulars and Conditions of Sale, the General Terms of Sale and any Further Terms of Sale.

1.2 GST will be payable in accordance with the statement of the purchase price in the Offer by Tender to Purchase.

1.3 The GST date is (clause 15.0):

1.4 Land Act consent required (clause 11.1): Yes/No

1.5 Land Act date (clause 11.2):

1.6 The settlement date is:

1.7 The interest rate for late settlement is: 15% p.a.

2.0 CONDUCT OF TENDER

2.1 A tender must be submitted in this form in duplicate in a sealed envelope marked "Tender [address of property]" and must be received at the Delivery Address for Tenders by the Closing Date and Time (time being of the essence).

2.2 A tender offer must state the purchase price as an exact dollar amount without reference to any calculation, variation, or to the purchase price contained in any other tender.

2.3 The deposit, equivalent to 10% of the purchase price, must be paid to the vendor or the vendor's agent in accordance with clause 4.1, or at such other time as is specified in this agreement.

2.4 A tender must be executed as follows:

(1) Where it is signed by an agent, there must be attached an authority signed by the principal.

(2) In the case of a partnership, it must be signed by all partners or, if all partners have not signed, by a duly authorised partner whose signature must follow the name of the partnership, followed by the word "Partner".

(3) In the case of a company, it must be signed by an officer of the company authorised to sign or, where at least two directors are required to execute a document, two or more of such officers, and there must be attached evidence of that authority.

(4) Where it is signed by an attorney, there must be attached a copy of the power of attorney, together with a declaration or certificate of non-revocation.

2.5 A tender will not be opened before the Closing Date and Time.

2.6 All tenders, including the identity of the tenderer, will be kept confidential and will not be divulged to any other tenderer or third party, save that statistical data relating to successful tenders may be provided to the Real Estate Institute of New Zealand Incorporated.

2.7 The offer contained in each tender cannot be withdrawn until after the Tender Acceptance Date, being the fifth working day after the Closing Date and Time.

2.8 A tender is deemed to be accepted on signing by the vendor of the Acceptance of Tender. Acceptance will be communicated to the successful tenderer and/or the tenderer's lawyer as soon as reasonably practicable.

2.9 The vendor may:

(1) sell the property in such manner as the vendor sees fit at any time, whether before or after the opening of tenders;

(2) reject any tender even if it is the highest;

(3) negotiate with any tenderer to the exclusion of any others after the opening of tenders;

(4) re-advertise for tenders;

(5) ignore any irregularities in the tender process; and

(6) at any time before the Closing Date and Time, extend the Closing Date and Time by a maximum of twenty working days, in which case each of the dates mentioned in clauses 1.3, 1.5 and 1.6 of the Conditions of Sale shall be deemed to have been extended by an equivalent period.

2.10 The tenderer must complete the GST information in Schedule 1 before submitting a tender, if applicable.

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GENERAL TERMS OF SALE

3.0 Definitions, time for performance, notices, and interpretation

3.1 Definitions

(1) Unless the context requires a different interpretation, words and phrases not otherwise defined have the same meanings ascribed to those words and phrases in the Goods and Services Tax Act 1985, the Property Law Act 2007, the Resource Management Act 1991 or the Unit Titles Act 2010.

(2) "Accessory unit", "owner", "principal unit", "unit", and "unit plan" have the meanings ascribed to those terms in the Unit Titles Act.

(3) "Agreement" means this document including the Particulars and Conditions of Sale, these General Terms of Sale, any Further Terms of Sale, and any schedules and attachments.

(4) "Appointee", for the purposes of clause 12, means:

(a) an experienced property lawyer or an experienced litigator or an expert committee (such as a committee of TLANZ) appointed by the parties; and

(b) where, for the purposes of clause 12.8(4), the claim for compensation is made under clause 7.2, the appointee may be an experienced registered valuer or quantity surveyor appointed by the parties; but

(c) if the parties cannot agree on the appointee, the appointment shall be made on the application of either party by the president.

(5) "Associated person", "conveyancer", "offshore RLWT person", "residential land purchase amount", "RLWT", "RLWT certificate of exemption" and "RLWT rules" have the meanings ascribed to those terms in the Income Tax Act 2007.

(6) "Automatic garage door facility" means an electronic facility for the opening and closing of a garage door, operated by a garage door remote control.

(7) "Building", "building consent", "code compliance certificate", "commercial on-seller", "compliance schedule" and "household unit" have the meanings ascribed to those terms in the Building Act.

(8) "Building Act" means the Building Act 2004.

(9) "Building warrant of fitness" means a building warrant of fitness supplied to a territorial authority under the Building Act.

(10) "Cleared funds" means an electronic transfer of funds that has been made strictly in accordance with the requirements set out in the PLS Guidelines.

(11) "Commissioner" has the meaning ascribed to that term in the Tax Administration Act 1994.

(12) "Default GST" means any additional GST, penalty (civil or otherwise), interest, or other sum imposed on the vendor (or where the vendor is or was a member of a GST group its representative member) under the GST Act or the Tax Administration Act 1994 by reason of non-payment of any GST payable in respect of the supply made under this agreement but does not include any such sum levied against the vendor (or where the vendor is or was a member of a GST group its representative member) by reason of a default or delay by the vendor after payment of the GST to the vendor by the purchaser.

(13) "Electronic instrument" has the same meaning as ascribed to that term in the Land Transfer Act 2017.

(14) "Going concern", "goods", "principal place of residence", "recipient", "registered person", "registration number", "supply", "taxable activity" and "taxable supply" have the meanings ascribed to those terms in the GST Act.

(15) "GST" means Goods and Services Tax arising pursuant to the Goods and Services Tax Act 1985 and "GST Act" means the Goods and Services Tax Act 1985.

(16) "Land Act date" means the Land Act date stated in clause 1.5, or if no date is stated, has the meaning described in clause 11.2.

(17) "Landonline Workspace" means an electronic workspace facility approved by the Registrar-General of Land pursuant to the provisions of the Land Transfer Act 2017.

(18) "Leases" means any tenancy agreement, agreement to lease (if applicable), lease, sublease, or licence to occupy in respect of the property, and includes any receipt or other evidence of payment of any bond and any formal or informal document or letter evidencing any variation, renewal, extension, review, or assignment.

(19) "LIM" means a land information memorandum issued pursuant to the Local Government Official Information and Meetings Act 1987.

(20) "LINZ" means Land Information New Zealand.

(21) "Local authority" means a territorial authority or a regional council.

(22) "OIA consent" means consent to purchase the property under the Overseas Investment Act 2005.

(23) "PLS Guidelines" means the most recent edition, as at the date of this agreement, of the New Zealand Law Society Property Law Section Guidelines, issued by the New Zealand Law Society.

(24) "President" means the president of TLANZ, or other authorised delegate.

(25) "Proceedings" means any application to any court or tribunal or any referral or submission to mediation, adjudication or arbitration or any other dispute resolution procedure.

(26) "Property" means the property described in this agreement.

(27) "Purchase price" means the total purchase price stated in this agreement which the purchaser has agreed to pay the vendor for the property and the chattels included in the sale.

(28) "Purchase price allocation" means an allocation of the purchase price, and (if applicable) any other consideration for the property and the chattels included in the sale, to the property, chattels or any part thereof that affects a person's tax position under the Income Tax Act 2007 and/or the GST Act.

(29) "Regional council" means a regional council within the meaning of the Local Government Act 2002.

(30) "REINZ" means the Real Estate Institute of New Zealand Incorporated.

(31) "Remote settlement" means settlement of the sale and purchase of the property by way of the purchaser's lawyer paying the moneys due and payable on the settlement date directly into the trust account of the vendor's lawyer, in consideration of the vendor agreeing to meet the vendor's obligations under clause 5.8(2), pursuant to the protocol for remote settlement recommended in the PLS Guidelines.

(32) "Rules" means body corporate operational rules under the Unit Titles Act.

(33) "Secure web document exchange" means an electronic messaging service enabling messages and electronic documents to be posted by one party to a secure website to be viewed by the other party immediately after posting.

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(34) "Settlement" means (unless otherwise agreed by the parties in writing) the moment in time when the vendor and purchaser have fulfilled their obligations under clause 5.8.
(35) "Settlement date" means the date specified as such in this agreement.
(36) "Settlement statement" means a statement showing the purchase price, plus any GST payable by the purchaser in addition to the purchase price, less any deposit or other payments or allowances to be credited to the purchaser, together with apportionments of all incomings and outgoings apportioned at the settlement date.
(37) "Tax information" and "tax statement" have the meanings ascribed to those terms in the Land Transfer Act 2017.
(38) "Territorial authority" means a territorial authority within the meaning of the Local Government Act 2002.
(39) "Title" includes where appropriate a record of title within the meaning of the Land Transfer Act 2017.
(40) "TLANZ" means The Law Association of New Zealand Incorporated.
(41) "Unit title" means a unit title under the Unit Titles Act.
(42) "Unit Titles Act" means the Unit Titles Act 2010.
(43) "Working day" means any day of the week other than:
(a) Saturday, Sunday, Waitangi Day, Good Friday, Easter Monday, Anzac Day, the Sovereign's Birthday, and Labour Day;
(b) if Waitangi Day or Anzac Day falls on a Saturday or Sunday, the following Monday;
(c) a day in the period commencing on the 24th day of December in any year and ending on the 5th day of January in the following year, both days inclusive;
(d) the day observed as the anniversary of any province in which the property is situated;
(e) the day on which a public holiday is observed to acknowledge Matariki, pursuant to the Te Kāhui o Matariki Public Holiday Act 2022; and
(f) any other day that the Government of New Zealand declares to be a public holiday.
A working day shall be deemed to commence at 9.00 am and to terminate at 5.00 pm.

3.2 Unless a contrary intention appears in clause 1.7 of the Conditions of Sale or elsewhere in this agreement:
(1) the interest rate for late settlement is equivalent to the interest rate charged by the Inland Revenue Department on unpaid tax under the Tax Administration Act 1994 during the period for which the interest rate for late settlement is payable, plus 5% per annum; and
(2) a party is in default if it did not do what it has contracted to do to enable settlement to occur, regardless of the cause of such failure.

3.3 Time for Performance
(1) Where the day nominated for settlement or the fulfilment of a condition is not a working day, then the settlement date or the date for fulfilment of the condition shall be the last working day before the day so nominated.
(2) Any act done pursuant to this agreement by a party, including service of notices, after 5.00 pm on a working day, or on a day that is not a working day, shall be deemed to have been done at 9.00 am on the next succeeding working day.
(3) Where two or more acts done pursuant to this agreement, including service of notices, are deemed to have been done at the same time, they shall take effect in the order in which they would have taken effect but for clause 3.3(2).

3.4 Notices
The following apply to all notices between the parties relevant to this agreement, whether authorised by this agreement or by the general law:
(1) All notices must be served in writing.
(2) Any notice under section 28 of the Property Law Act 2007, where the purchaser is in possession of the property, must be served in accordance with section 353 of that Act.
(3) All other notices, unless otherwise required by the Property Law Act 2007, must be served by one of the following means:
(a) on the party as authorised by sections 354 to 361 of the Property Law Act 2007, or
(b) on the party or on the party's lawyer:
(i) by personal delivery; or
(ii) by posting by ordinary mail; or
(iii) by email; or
(iv) in the case of the party's lawyer only, by sending by document exchange or, if both parties' lawyers have agreed to subscribe to the same secure web document exchange for this agreement, by secure web document exchange.
(4) In respect of the means of service specified in clause 3.4(3)(b), a notice is deemed to have been served:
(a) in the case of personal delivery, when received by the party or at the lawyer's office;
(b) in the case of posting by ordinary mail, on the fifth working day following the date of posting to the address for service notified in writing by the party or to the postal address of the lawyer's office;
(c) in the case of email:
(i) when sent to the email address provided for the party or the party's lawyer on the back page; or
(ii) any other email address notified subsequently in writing by the party or the party's lawyer (which shall supersede the email address on the back page); or
(iii) if no such email address is provided on the back page or notified subsequently in writing, the office email address of the party's lawyer's firm appearing on the firm's letterhead or website;
(d) in the case of sending by document exchange, on the second working day following the date of sending to the document exchange number of the lawyer's office;
(e) in the case of sending by secure web document exchange, on the first working day following the date of sending to the secure web document exchange.
(5) Any period of notice required to be given under this agreement shall be computed by excluding the day of service.

3.5 Interpretation and Execution
(1) If there is more than one vendor or purchaser, the liability of the vendors or of the purchasers, as the case may be, is joint and several.
(2) Where the purchaser executes this agreement with provision for a nominee, or as agent for an undisclosed or disclosed but unidentified principal, or on behalf of a company to be formed, the purchaser shall at all times remain liable for all obligations on the part of the purchaser.

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(3) If any inserted term (including any Further Terms of Sale) conflicts with the General Terms of Sale the inserted term shall prevail.
(4) Headings are for information only and do not form part of this agreement.
(5) References to statutory provisions shall be construed as references to those provisions as they may be amended or re-enacted or as their application is modified by other provisions from time to time.
(6) Reference to a party's lawyer includes reference to a conveyancing practitioner (as defined in the Lawyers and Conveyancers Act 2006), engaged by that party, provided that all actions of that conveyancing practitioner (including without limitation any actions in respect of any undertaking or in respect of settlement) must strictly accord with the PLS Guidelines.
(7) This agreement may be signed by means of an electronic signature.

3.6 Use of form
(1) Each party warrants that neither they nor their lawyer or agent has altered, removed, or added to the published text of this edition of the TLANZ/REINZ Agreement for Sale and Purchase of Real Estate. This warranty does not prohibit nor apply to:
(a) removal of published text by way of strikethrough (for example, ~~strikethrough~~), nor
(b) the addition of text to the published text in a manner which leaves the published text in place and which makes the alteration, removal, or addition reasonably identifiable.

4.0 Deposit

4.1 The purchaser shall pay the deposit to the vendor or the vendor's agent immediately upon the vendor giving notice to the purchaser that the tender is accepted pursuant to clause 2.8, or at such other time as is specified in this agreement.

4.2 If the deposit is not paid on the due date for payment, the vendor may at any time thereafter serve on the purchaser notice requiring payment. If the purchaser fails to pay the deposit on or before the third working day after service of the notice, time being of the essence, the vendor may cancel this agreement by serving notice of cancellation on the purchaser. No notice of cancellation shall be effective if the deposit has been paid before the notice of cancellation is served.

4.3 The deposit shall be in part payment of the purchase price.

4.4 The person to whom the deposit is paid shall hold it as a stakeholder until the latest of those of the following matters which are applicable to this agreement:
(1) where this agreement is entered into subject to any condition(s) expressed in this agreement, each such condition has been fulfilled or waived; and/or
(2) where the property is a unit title:
(a) a pre-contract disclosure statement that complies with section 146 of the Unit Titles Act, and a pre-settlement disclosure statement that complies with section 147 of the Unit Titles Act, have been provided to the purchaser by the vendor within the times prescribed in those sections; and/or
(b) all rights of delay or cancellation under sections 149, 149A, 151, or 151A of the Unit Titles Act that have arisen have been waived or have expired without being executed; and/or
(c) this agreement is cancelled pursuant to sections 149A or 151A of the Unit Titles Act; and/or
(3) this agreement is avoided pursuant to clause 11.4(5).

4.5 Where the person to whom the deposit is paid is a real estate agent, the period for which the agent must hold the deposit as a stakeholder pursuant to clause 4.4 shall run concurrently with the period for which the agent must hold the deposit under section 123 of the Real Estate Agents Act 2008, but the agent must hold the deposit for the longer of those two periods, or such lesser period as is agreed between the parties in writing as required by section 123 of the Real Estate Agents Act 2008.

5.0 Possession and Settlement

Possession

5.1 Unless particulars of a tenancy are included in this agreement, the property is sold with vacant possession and the vendor shall so yield the property on the settlement date.

5.2 If the property is sold with vacant possession, then subject to the rights of any tenants of the property, the vendor shall permit the purchaser or any person authorised by the purchaser in writing, upon reasonable notice:
(1) to enter the property on one occasion prior to the settlement date for the purposes of examining the property, chattels and fixtures which are included in the sale; and
(2) to re-enter the property no later than the day prior to the settlement date to confirm compliance by the vendor with any agreement made by the vendor to carry out any work on the property, the chattels and the fixtures.

5.3 Possession shall be given and taken on the settlement date. Outgoings and incomings in respect of the settlement date are the responsibility of and belong to the vendor.

5.4 On the settlement date, the vendor shall make available to the purchaser keys to all exterior doors that are locked by key, electronic door openers to all doors that are opened electronically, and the keys and/or security codes to any alarms. The vendor does not have to make available keys, electronic door openers, and security codes where the property is tenanted and these are held by the tenant.

Settlement

5.5 The vendor shall prepare, at the vendor's own expense, a settlement statement. The vendor shall tender the settlement statement to the purchaser or the purchaser's lawyer a reasonable time prior to the settlement date. If the property is a unit title, the vendor's settlement statement must show any periodic contributions to the operating account that have been struck prior to the settlement date (whether or not they are payable before or after the settlement date) and these periodic contributions to the operating account shall be apportioned. There shall be no apportionment of contributions to any long-term maintenance fund, contingency fund or capital improvement fund.

5.6 The purchaser's lawyer shall:
(1) within a reasonable time prior to the settlement date create a Landonline Workspace for the transaction, notify the vendor's lawyer of the dealing number allocated by LINZ, and prepare in that workspace a transfer instrument in respect of the property; and
(2) prior to settlement:
(a) lodge in that workspace the tax information contained in the transferee's tax statement; and
(b) certify and sign the transfer instrument.

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5.7 The vendor's lawyer shall:
(1) within a reasonable time prior to the settlement date prepare in that workspace all other electronic instruments required to confer title on the purchaser in terms of the vendor's obligations under this agreement; and
(2) prior to settlement:
(a) lodge in that workspace the tax information contained in the transferor's tax statement; and
(b) have those instruments and the transfer instrument certified, signed and, where possible, pre-validated.

5.8 On the settlement date:
(1) the balance of the purchase price, interest and other moneys, if any, shall be paid by the purchaser in cleared funds or otherwise satisfied as provided in this agreement (credit being given for any amount payable by the vendor under clause 5.12 or 5.13, or for any deduction allowed to the purchaser under clause 7.2, or for any compensation agreed by the vendor in respect of a claim made by the purchaser pursuant to clause 12.2(1), or for any interim amount the purchaser is required to pay to a stakeholder pursuant to clause 12.8);
(2) the vendor's lawyer shall immediately thereafter:
(a) release or procure the release of the transfer instrument and the other instruments mentioned in clause 5.7(1) so that the purchaser's lawyer can then submit them for registration;
(b) pay to the purchaser's lawyer the LINZ registration fees on all of the instruments mentioned in clause 5.7(1), unless these fees will be invoiced to the vendor's lawyer by LINZ directly; and
(c) deliver to the purchaser's lawyer any other documents that the vendor must provide to the purchaser on settlement in terms of this agreement, including where this agreement provides for the property to be sold tenanted, all leases relating to the tenancy that are held by the vendor and a notice from the vendor to each tenant advising them of the sale of the property and directing them to pay to the purchaser as landlord, in such manner as the purchaser may prescribe, all rent or other moneys payable under the leases.

5.9 All obligations under clause 5.8 are interdependent.

5.10 The parties shall complete settlement by way of remote settlement in accordance with the PLS Guidelines. Where the purchaser considers it is necessary or desirable to tender settlement, this may be effected (in addition to any other valid form of tender) by the purchaser's lawyer providing to the vendor's lawyer a written undertaking that:
(1) the purchaser is ready, willing, and able to settle;
(2) the purchaser's lawyer has certified and signed the transfer instrument and any other instruments in the Landonline Workspace for the transaction that must be signed on behalf of the purchaser; and
(3) the purchaser's lawyer holds in their trust account in cleared funds the amount that the purchaser must pay on settlement.

Last-Minute Settlement

5.11 If due to the delay of the purchaser, settlement takes place between 4.00 pm and 5.00 pm on the settlement date ("last-minute settlement"), the purchaser shall pay the vendor:
(1) one day's interest at the interest rate for late settlement on the portion of the purchase price paid in the last-minute settlement; and
(2) if the day following the last-minute settlement is not a working day, an additional day's interest (calculated in the same manner) for each day until, but excluding, the next working day.

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Purchaser Default: Late Settlement

5.12 If any portion of the purchase price is not paid upon the due date for payment, then, provided that the vendor provides reasonable evidence of the vendor's ability to perform any obligation the vendor is obliged to perform on that date in consideration for such payment:
(1) the purchaser shall pay to the vendor interest at the interest rate for late settlement on the portion of the purchase price so unpaid for the period from the due date for payment until payment ("the default period"); but nevertheless, this stipulation is without prejudice to any of the vendor's rights or remedies including any right to claim for additional expenses and damages. For the purposes of this clause, a payment made on a day other than a working day or after the termination of a working day shall be deemed to be made on the next following working day and interest shall be computed accordingly; and
(2) the vendor is not obliged to give the purchaser possession of the property or to pay the purchaser any amount for remaining in possession, unless this agreement relates to a tenanted property, in which case the vendor must elect either to:
(a) account to the purchaser on settlement for incomings in respect of the property which are payable and received during the default period, in which event the purchaser shall be responsible for the outgoings relating to the property during the default period; or
(b) retain such incomings in lieu of receiving interest from the purchaser pursuant to clause 5.12(1).
(3) If the parties are unable to agree upon any amount payable under this clause 5.12, either party may make a claim under clause 12.0.

Vendor Default: Late Settlement or Failure to Give Possession

5.13 (1) For the purposes of this clause 5.13:
(a) the default period means:
(i) in clause 5.13(2), the period from the settlement date until the date when the vendor is able and willing to provide vacant possession and the purchaser takes possession; and
(ii) in clause 5.13(3), the period from the date the purchaser takes possession until the date when settlement occurs; and
(iii) in clause 5.13(5), the period from the settlement date until the date when settlement occurs; and
(b) the vendor shall be deemed to be unwilling to give possession if the vendor does not offer to give possession.
(2) If this agreement provides for vacant possession but the vendor is unable or unwilling to give vacant possession on the settlement date, then, provided that the purchaser provides reasonable evidence of the purchaser's ability to perform the purchaser's obligations under this agreement:
(a) the vendor shall pay the purchaser, at the purchaser's election, either:
(i) compensation for any reasonable costs incurred for temporary accommodation for persons and storage of chattels during the default period; or

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(ii) an amount equivalent to interest at the interest rate for late settlement on the entire purchase price during the default period; and

(b) the purchaser shall pay the vendor an amount equivalent to the interest earned or which would be earned on overnight deposits lodged in the purchaser's lawyer's trust bank account on such portion of the purchase price (including any deposit) as is payable under this agreement on or by the settlement date but remains unpaid during the default period less:

(i) any withholding tax; and

(ii) any bank or legal administration fees and commission charges; and

(iii) any interest payable by the purchaser to the purchaser's lender during the default period in respect of any mortgage or loan taken out by the purchaser in relation to the purchase of the property.

(3) If this agreement provides for vacant possession and the vendor is able and willing to give vacant possession on the settlement date, then, provided the purchaser provides reasonable evidence of the purchaser's ability to perform the purchaser's obligations under this agreement, the purchaser may elect to take possession in which case the vendor shall not be liable to pay any interest or other moneys to the purchaser but the purchaser shall pay the vendor the same amount as that specified in clause 5.13(2)(b) during the default period. A purchaser in possession under this clause 5.13(3) is a licensee only.

(4) Notwithstanding the provisions of clause 5.13(3), the purchaser may elect not to take possession when the purchaser is entitled to take it. If the purchaser elects not to take possession, the provisions of clause 5.13(2) shall apply as though the vendor were unable or unwilling to give vacant possession on the settlement date.

(5) If this agreement provides for the property to be sold tenanted then, provided that the purchaser provides reasonable evidence of the purchaser's ability to perform the purchaser's obligations under this agreement, the vendor shall on settlement account to the purchaser for incomings which are payable and received in respect of the property during the default period less the outgoings paid by the vendor during that period. Apart from accounting for such incomings, the vendor shall not be liable to pay any other moneys to the purchaser but the purchaser shall pay the vendor the same amount as that specified in clause 5.13(2)(b) during the default period.

(6) The provisions of this clause 5.13 shall be without prejudice to any of the purchaser's rights or remedies including any right to claim for any additional expenses and damages suffered by the purchaser.

(7) If the parties are unable to agree upon any amount payable under this clause 5.13, either party may make a claim under clause 12.0.

Deferment of Settlement and Possession

5.14 If:

(1) this is an agreement for the sale by a commercial on-seller of a household unit; and

(2) a code compliance certificate has not been issued by the settlement date in relation to the household unit,

then, unless the parties agree otherwise (in which case the parties shall enter into a written agreement in the form (if any) prescribed by the Building (Forms) Regulations 2004), the settlement date shall be deferred to the fifth working day following the date upon which the vendor has given the purchaser notice that the code compliance certificate has been issued (which notice must be accompanied by a copy of the certificate).

5.15 In every case, if neither party is ready, willing, and able to settle on the settlement date, the settlement date shall be deferred to the third working day following the date upon which one of the parties gives notice it has become ready, willing, and able to settle.

5.16 If:

(1) the property is a unit title; and

(2) the settlement date is deferred pursuant to either clause 5.14 or clause 5.15; and

(3) the vendor considers on reasonable grounds that an extension of time is necessary or desirable in order for the vendor to comply with clause 10.3,

then the vendor may extend the settlement date:

(a) where there is a deferment of the settlement date pursuant to clause 5.14, to the tenth working day after the date upon which the vendor gives the purchaser notice that the code compliance certificate has been issued, provided the vendor gives notice of the extension to the purchaser no later than the second working day after such notice; or

(b) where there is a deferment of the settlement date pursuant to clause 5.15, to the tenth working day after the date upon which one of the parties gives notice that it has become ready, willing, and able to settle, provided the vendor gives notice of the extension to the purchaser no later than the second working day after such notice.

New Title Provision

5.17 (1) Where:

(a) the transfer of the property is to be registered against a new title yet to be issued; and

(b) a search copy, as defined in section 60 of the Land Transfer Act 2017, of that title is not obtainable by the tenth working day prior to the settlement date,

then, unless the purchaser elects that settlement shall still take place on the agreed settlement date, the settlement date shall be deferred to the tenth working day after the date on which the vendor has given the purchaser notice that a search copy is obtainable.

(2) Clause 5.17(1) shall not apply where it is necessary to register the transfer of the property to enable a plan to be deposited and title to the property to be issued.

6.0 Residential Land Withholding Tax

6.1 If the vendor does not have a conveyancer or the vendor and the purchaser are associated persons, then:

(1) the vendor must provide the purchaser or the purchaser's conveyancer, on or before the second working day before the due date for payment of the first residential land purchase amount payable under this agreement, with:

(a) sufficient information to enable the purchaser or the purchaser's conveyancer to determine to their reasonable satisfaction whether section 54C of the Tax Administration Act 1994 applies to the sale of the property; and

(b) if the purchaser or the purchaser's conveyancer determines to their reasonable satisfaction that section 54C of the Tax Administration Act 1994 does apply, all of the information required by that section and either an RLWT certificate of exemption in respect of the sale or otherwise such other information that the purchaser or the purchaser's conveyancer

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may reasonably require to enable the purchaser or the purchaser's conveyancer to determine to their reasonable satisfaction the amount of RLWT that must be withheld from each residential land purchase amount;

(2) the vendor shall be liable to pay any costs reasonably incurred by the purchaser or the purchaser's conveyancer in relation to RLWT, including the cost of obtaining professional advice in determining whether there is a requirement to withhold RLWT and the amount of RLWT that must be withheld, if any; and

(3) any payments payable by the purchaser on account of the purchase price shall be deemed to have been paid to the extent that:

(a) RLWT has been withheld from those payments by the purchaser or the purchaser's conveyancer as required by the RLWT rules; and

(b) any costs payable by the vendor under clause 6.1(2) have been deducted from those payments by the purchaser or the purchaser's conveyancer.

6.2 If the vendor does not have a conveyancer or the vendor and the purchaser are associated persons and if the vendor fails to provide the information required under clause 6.1(1), then the purchaser may:

(1) defer the payment of the first residential land purchase amount payable under this agreement (and any residential land purchase amount that may subsequently fall due for payment) until such time as the vendor supplies that information; or

(2) on the due date for payment of that residential land purchase amount, or at any time thereafter if payment has been deferred by the purchaser pursuant to this clause and the vendor has still not provided that information, treat the sale of the property as if it is being made by an offshore RLWT person where there is a requirement to pay RLWT.

6.3 If pursuant to clause 6.2 the purchaser treats the sale of the property as if it is being made by an offshore RLWT person where there is a requirement to pay RLWT, the purchaser or the purchaser's conveyancer may:

(1) make a reasonable assessment of the amount of RLWT that the purchaser or the purchaser's conveyancer would be required by the RLWT rules to withhold from any residential land purchase amount if the sale is treated in that manner; and

(2) withhold that amount from any residential land purchase amount and pay it to the Commissioner as RLWT.

6.4 Any amount withheld by the purchaser or the purchaser's conveyancer pursuant to clause 6.3 shall be treated as RLWT that the purchaser or the purchaser's conveyancer is required by the RLWT rules to withhold.

6.5 The purchaser or the purchaser's conveyancer shall give notice to the vendor a reasonable time before payment of any sum due to be paid on account of the purchase price of:

(1) the costs payable by the vendor under clause 6.1(2) that the purchaser or the purchaser's conveyancer intends to deduct; and

(2) the amount of RLWT that the purchaser or the purchaser's conveyancer intends to withhold.

7.0 Risk and insurance

7.1 The property and chattels shall remain at the risk of the vendor until possession is given and taken.

7.2 If, prior to the giving and taking of possession, the property is destroyed or damaged, and such destruction or damage has not been made good by the settlement date, then the following subclauses shall apply:

(1) if the destruction or damage has been sufficient to render the property untenantable and it is untenantable on the settlement date, the purchaser may:

(a) complete the purchase at the purchase price, less a sum equal to any insurance moneys received or receivable by or on behalf of the vendor in respect of such destruction or damage, provided that no reduction shall be made to the purchase price if the vendor's insurance company has agreed to reinstate for the benefit of the purchaser to the extent of the vendor's insurance cover; or

(b) cancel this agreement by serving notice on the vendor in which case the vendor shall return to the purchaser immediately the deposit and any other moneys paid by the purchaser, and neither party shall have any right or claim against the other arising from this agreement or its cancellation;

(2) if the property is not untenantable on the settlement date, the purchaser shall complete the purchase at the purchase price less a sum equal to the amount of the diminution in value of the property which, to the extent that the destruction or damage to the property can be made good, shall be deemed to be equivalent to the reasonable cost of reinstatement or repair;

(3) if the property is zoned for rural purposes under an operative District Plan, damage to the property shall be deemed to have rendered the property untenantable where the diminution in value exceeds an amount equal to 20% of the purchase price; and

(4) if the amount of the diminution in value is disputed, the parties shall follow the same procedure as that set out in clause 12.8 for when an amount of compensation is disputed.

7.3 The purchaser shall not be required to take over any insurance policies held by the vendor.

8.0 Title, boundaries and requisitions

8.1 The vendor shall not be bound to point out the boundaries of the property except that on the sale of a vacant residential lot which is not limited as to parcels the vendor shall ensure that all boundary markers required by the Cadastral Survey Act 2002 and any related rules and regulations to identify the boundaries of the property are present in their correct positions at the settlement date.

8.2 The purchaser is deemed to have accepted the vendor's title to the property and the purchaser may not make any requisitions or objections as to the title.

8.3 The vendor shall not be liable to pay for or contribute towards the expense of erection or maintenance of any fence between the property and any contiguous land of the vendor but this proviso shall not enure for the benefit of any subsequent purchaser of the contiguous land; and the vendor shall be entitled to require the inclusion of a fencing covenant to this effect in any transfer of the property.

9.0 Vendor's warranties and undertakings

9.1 The vendor warrants and undertakes that at the date of release of the tender documentation, the vendor has not:

(1) received any notice or demand and has no knowledge of any requisition or outstanding requirement:

(a) from any local or government authority or other statutory body; or

(b) under the Resource Management Act 1991; or

(c) from any tenant of the property; or

(d) from any other party; or

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(2) given any consent or waiver,

which directly or indirectly affects the property and which has not been disclosed in writing to the purchaser.

9.2 The vendor warrants and undertakes that at the date of this agreement the vendor has no knowledge or notice of any fact which might result in proceedings being instituted by or against the vendor or the purchaser in respect of the property.

9.3 The vendor warrants and undertakes that at settlement:

(1) The chattels included in the sale listed in Schedule 2 and all plant, equipment, systems or devices which provide any services or amenities to the property, including, without limitation, automatic garage door facility, security, heating, cooling, or air-conditioning, are delivered to the purchaser in reasonable working order, but in all other respects in their state of repair as at the date of this agreement (fair wear and tear excepted).

(2) All electrical and other installations on the property are free of any charge whatsoever and all chattels included in the sale are the unencumbered property of the vendor.

(3) There are no arrears of rates, water rates or charges outstanding on the property and where the property is subject to a targeted rate that has been imposed as a means of repayment of any loan, subsidy or other financial assistance made available by or through the local authority, the amount required to remove the imposition of that targeted rate has been paid.

(4) Where an allowance has been made by the vendor in the settlement statement for incomings receivable, the settlement statement correctly records those allowances including, in particular, the dates up to which the allowances have been made.

(5) Where the vendor has done or caused or permitted to be done on the property any works:

(a) any permit, resource consent, or building consent required by law was obtained; and

(b) where any "restricted building work" as defined in the Building Act was done on the property on or after 13 March 2012, such work was carried out or supervised by a suitably qualified person;

(c) to the vendor's knowledge, the works were completed in compliance with any required permits or consents; and

(d) where appropriate, a code compliance certificate was issued for those works.

(6) Where under the Building Act, any building on the property sold requires a compliance schedule:

(a) the vendor has fully complied with any requirements specified in any compliance schedule issued by a territorial authority under the Building Act in respect of the building;

(b) the building has a current building warrant of fitness; and

(c) the vendor is not aware of any reason, that the vendor has not disclosed in writing to the purchaser, which would prevent a building warrant of fitness from being supplied to the territorial authority when the building warrant of fitness is next due.

(7) Since the date of this agreement, the vendor has not given any consent or waiver which directly or indirectly affects the property.

(8) Any notice or demand received by the vendor, which directly or indirectly affects the property, after the date of this agreement:

(a) from any local or government authority or other statutory body; or

(b) under the Resource Management Act 1991; or

(c) from any tenant of the property; or

(d) from any other party,

has been delivered forthwith by the vendor to either the purchaser or the purchaser's lawyer, unless the vendor has paid or complied with such notice or demand. If the vendor fails to so deliver or pay the notice or demand, the vendor shall be liable for any penalty incurred.

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9.4 If the property is or includes part only of a building, the warranty and undertaking in clause 9.3(6) does not apply. Instead the vendor warrants and undertakes at the date of this agreement that, where under the Building Act the building of which the property forms part requires a compliance schedule:

(1) to the vendor's knowledge, there has been full compliance with any requirements specified in any compliance schedule issued by a territorial authority under the Building Act in respect of the building;

(2) the building has a current building warrant of fitness; and

(3) the vendor is not aware of any reason, that the vendor has not disclosed in writing to the purchaser, which would prevent a building warrant of fitness from being supplied to the territorial authority when the building warrant of fitness is next due.

9.5 The vendor warrants and undertakes that on or immediately after settlement:

(1) If the water and wastewater charges are determined by meter, the vendor will have the water meter read and will pay the amount of the charge payable pursuant to that reading; but if the water supplier will not make special readings, the water and wastewater charges shall be apportioned.

(2) Any outgoings included in the settlement statement are paid in accordance with the settlement statement and, where applicable, to the dates shown in the settlement statement, or will be so paid immediately after settlement.

(3) The vendor will give notice of sale in accordance with the Local Government (Rating) Act 2002 to the territorial authority and regional council in whose district the land is situated and will also give notice of the sale to every other authority that makes and levies rates or charges on the land and to the supplier of water.

(4) Where the property is a unit title, the vendor will notify the body corporate in writing of the transfer of the property and the name and address of the purchaser.

10.0 Unit title provisions

10.1 If the property is a unit title, sections 144 to 153 of the Unit Titles Act require the vendor to provide to the purchaser a pre-contract disclosure statement and a pre-settlement disclosure statement in accordance with the Unit Titles Act. The requirements of this clause 10 are in addition to, and do not derogate from, the requirements of that Act.

10.2 If the property is a unit title, then except to the extent the vendor has disclosed otherwise to the purchaser in writing prior to the parties entering into this agreement, the vendor warrants and undertakes as follows as at the date of this agreement:

(1) The information in the pre-contract disclosure statement provided to the purchaser was complete and correct to the extent required by the Unit Titles Act.

(2) Apart from regular periodic contributions, no contributions have been levied or proposed by the body corporate

(3) There are no unsatisfied judgments against the body corporate and no proceedings have been instituted against or by the body corporate.

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(4) No order or declaration has been made by any Court or Tribunal against the body corporate or the vendor under any provision of the Unit Titles Act.

(5) The vendor has no knowledge or notice of any fact which might result in:
  (a) the vendor or the purchaser incurring any other liability under any provision of the Unit Titles Act; or
  (b) any proceedings being instituted by or against the body corporate; or
  (c) any order or declaration being sought against the body corporate or the vendor under any provision of the Unit Titles Act.

(6) The vendor is not aware of proposals to pass any body corporate resolution relating to its rules nor are there any unregistered changes to the body corporate rules.

(7) No lease, licence, easement, or special privilege has been granted by the body corporate in respect of any part of the common property.

(8) No resolution has been passed and no application has been made and the vendor has no knowledge of any proposal for:
  (a) the transfer of the whole or any part of the common property;
  (b) the addition of any land to the common property;
  (c) the cancellation of the unit plan;
  (d) the deposit of an amendment to the unit plan, a redevelopment plan, or a new unit plan in substitution for the existing unit plan; or
  (e) any change to utility interest or ownership interest for any unit on the unit plan.

10.3 If the property is a unit title, not less than five working days before the settlement date, the vendor will provide:

(1) a certificate of insurance for all insurances effected by the body corporate under the provisions of section 135 of the Unit Titles Act; and

(2) a pre-settlement disclosure statement from the vendor, certified correct by the body corporate, under section 147 of the Unit Titles Act.

10.4 If the property is a unit title, then except to the extent the vendor has disclosed otherwise to the purchaser:

(1) Other than contributions to the operating account, long-term maintenance fund, contingency fund, or capital improvements fund that are shown in the pre-settlement disclosure statement, there are no other amounts owing by the vendor under any provision of the Unit Titles Act.

(2) All contributions and other moneys payable by the vendor to the body corporate have been paid in full.

(3) Since the date of this agreement, the vendor has not voted on any matter that would alter the warranties at clause 10.2(2), (3), (4), (5), (6), (7) and (8) are without the written consent of the purchaser.

10.5 If the property is a unit title and if the vendor does not provide the certificates of insurance and the pre-settlement disclosure statement under section 147 of the Unit Titles Act in accordance with the requirements of clause 10.3, then in addition to the purchaser's rights under sections 150, 151 and 151A of the Unit Titles Act, the purchaser may:

(1) postpone the settlement date until the fifth working day following the date on which that information is provided to the purchaser; or

(2) elect that settlement shall still take place on the settlement date, such election to be a waiver of any other rights to delay or cancel settlement under the Unit Titles Act or otherwise.

10.6 If the property is a unit title, each party specifies that:

(1) any email address of that party's lawyer provided on the back page of this agreement, or notified subsequently in writing by that party's lawyer, shall be an address for service for that party for the purposes of section 205(1)(d) of the Unit Titles Act; and

(2) if that party is absent from New Zealand, that party's lawyer shall be that party's agent in New Zealand for the purposes of section 205(2) of the Unit Titles Act.

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11.0 Conditions

11.1 If this agreement relates to a transaction to which the Land Act 1948 applies, this agreement is conditional upon the vendor obtaining the necessary consent by the Land Act date shown in clause 1.5 of the Conditions of Sale.

11.2 If the Land Act date is not shown in the Conditions of Sale that date shall be the settlement date or a date 65 working days after the date of this agreement, whichever is the sooner.

11.3 Resource Management Act condition

If this agreement relates to a transaction to which section 225 of the Resource Management Act 1991 applies then this agreement is subject to the appropriate condition(s) imposed by that section. All condition(s) under section 225(2) of that Act are deemed to be satisfied by both parties once the survey plan has deposited.

11.4 Operation of conditions

If this agreement is expressed to be subject either to the above or to any other condition(s), then in relation to each such condition the following shall apply unless otherwise expressly provided:

(1) The condition shall be a condition subsequent.

(2) The party or parties for whose benefit the condition has been included shall do all things which may reasonably be necessary to enable the condition to be fulfilled by the date for fulfilment.

(3) Time for fulfilment of any condition and any extended time for fulfilment to a fixed date shall be of the essence.

(4) The condition shall be deemed to be not fulfilled until notice of fulfilment has been served by one party on the other party.

(5) If the condition is not fulfilled by the date for fulfilment, either party may at any time before the condition is fulfilled or waived avoid this agreement by giving notice to the other. Upon avoidance of this agreement, the purchaser shall be entitled to the immediate return of the deposit and any other moneys paid by the purchaser under this agreement and neither party shall have any right or claim against the other arising from this agreement or its termination.

(6) At any time before this agreement is avoided, the purchaser may waive any finance condition and either party may waive any other condition which is for the sole benefit of that party. Any waiver shall be by notice.

12.0 Claims for compensation

12.1 If the purchaser has not purported to cancel this agreement, the breach by the vendor of any term of this agreement does not defer the purchaser's obligation to settle, but that obligation is subject to the provisions of this clause 12.0.

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12.2 The provisions of this clause apply if:
(1) the purchaser claims a right to compensation (and in making such a claim, the purchaser must act reasonably, but the vendor taking the view that the purchaser has not acted reasonably does not affect the purchaser's ability or right to make such a claim) for:
(a) a breach of any term of this agreement;
(b) a misrepresentation;
(c) a breach of section 9 or section 14 of the Fair Trading Act 1986;
(d) an equitable set-off, or
(2) there is a dispute between the parties regarding any amounts payable:
(a) under clause 5.12 or clause 5.13; or
(b) under clause 7.2.

12.3 To make a claim under this clause 12.0:
(1) the claimant must serve notice of the claim on the other party as early as is reasonably practicable and in any event no later than on or before the last working day prior to the settlement date, time being of the essence (except for claims made after the settlement date for amounts payable under clause 5.12 or clause 5.13, in respect of which the claimant may serve notice of the claim on the other party at any time after a dispute arises over those amounts); and
(2) the notice must:
(a) state the particular breach of the terms of this agreement, or the claim under clause 5.12, clause 5.13 or clause 7.2, or for misrepresentation, or for breach of section 9 or section 14 of the Fair Trading Act 1986, or for an equitable set-off; and
(b) state a genuine pre-estimate of the loss suffered by the claimant; and
(c) be particularised and quantified to the extent reasonably possible as at the date of the notice; and

12.4 If the claimant is unable to give notice under clause 12.3 in respect of claims under clause 12.2(1) or clause 12.2(2)(b) on or before the date that notice is due under clause 12.3(1) by reason of the conduct or omission of the other party, the notice may be served on or before the working day immediately preceding the last working day on which settlement must take place under a settlement notice served by either party under clause 13.1, time being of the essence.

12.5 If the amount of compensation is agreed, it shall be deducted from or added to the amount to be paid by the purchaser on settlement.

12.6 If the purchaser makes a claim for compensation under clause 12.2(1) but the vendor disputes that the purchaser has a valid or reasonably arguable claim, then:
(1) the vendor must give notice to the purchaser within three working days after service of the purchaser's notice under clause 12.3, time being of the essence; and
(2) the purchaser's right to make the claim (on the basis that such claim is valid or reasonably arguable) shall be determined by an appointee. The appointee's costs shall be met by the party against whom the determination is made or otherwise as determined by the appointee.

12.7 If the purchaser makes a claim for compensation under clause 12.2(1) and the vendor fails to give notice to the purchaser pursuant to clause 12.6, the vendor is deemed to have accepted that the purchaser has a valid or reasonably arguable claim.

12.8 If it is accepted, or determined under clause 12.6, that the purchaser has a right to claim compensation under clause 12.2(1) but the amount of compensation claimed is disputed, or if the claim is made under clause 12.2(2) and the amount of compensation claimed is disputed, then:
(1) an interim amount shall be paid on settlement by the party required to a stakeholder until the amount of the claim is determined;
(2) if the parties cannot agree on a stakeholder, the interim amount shall be paid to a stakeholder nominated on the application of either party by the president;
(3) the interim amount must be a reasonable sum having regard to the circumstances, except that:
(a) where the claim is under clause 5.13 the interim amount shall be the lower of the amount claimed, or an amount equivalent to interest at the interest rate for late settlement for the relevant default period on such portion of the purchase price (including any deposit) as is payable under this agreement on or by the settlement date; and
(b) neither party shall be entitled or required to undertake any discovery process, except to the extent this is deemed necessary by the appointee under clause 12.8(4) for the purposes of determining that the requirements of clauses 12.3(2)(b)-(c) have been met.
(4) if the parties cannot agree on the interim amount, the interim amount shall be determined by an appointee. The appointee's costs shall be met equally by the parties, or otherwise as determined by the appointee.
(5) the amount of the claim determined to be payable shall not be limited by the interim amount;
(6) the stakeholder shall lodge the interim amount on an interest-bearing call deposit with a bank registered under the Reserve Bank of New Zealand Act 1989 in the joint names of the vendor and the purchaser;
(7) the interest earned on the interim amount net of any withholding tax and any bank or legal administration fees and commission charges shall follow the destination of the interim amount; and
(8) apart from the net interest earned on the interim amount, no interest shall be payable by either party to the other in respect of the claim for compensation once the amount of the claim has been determined, provided that if the amount determined is in excess of the interim amount, the party liable to make payment of that excess shall pay interest to the other party at the interest rate for late settlement on the amount of that excess if it is not paid on or before the third working day after the date of notification of the determination, computed from the date of such notification until payment.

12.9 Where a determination has to be made under clause 12.6(2) or clause 12.8(4) and the settlement date will have passed before the determination is made, the settlement date shall be deferred to the second working day following the date of notification to both parties of the determination. Where a determination has to be made under both of these clauses, the settlement date shall be deferred to the second working day following the date on which notification to both parties has been made of both determinations. However, the settlement date will only be deferred under this clause 12.9 if, prior to such deferral, the purchaser's lawyer provides written confirmation to the vendor's lawyer that but for the resolution of the claim for compensation, the purchaser is ready, willing, and able to complete settlement.

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12.10 The procedures prescribed in clauses 12.1 to 12.9 shall not prevent either party from taking proceedings for specific performance of this agreement.

12.11 A determination under clause 12.6 that the purchaser does not have a valid or reasonably arguable claim for compensation under clause 12.2(1) shall not prevent the purchaser from pursuing that claim following settlement.

12.12 Where a determination is made by an appointee under either clause 12.6 or clause 12.8, that appointee:

(1) shall not be liable to either party for any costs or losses that either party may claim to have suffered in respect of the determination; and

(2) may make an order that one party must meet all or some of the reasonable legal costs of the other party, and in making such an order the appointee may without limitation take into account the appointee's view of the reasonableness of the conduct of the parties under this clause.

12.13 Where the appointee is determined by the president, the president shall not be liable to either party for any costs or losses that either party may claim to have suffered in respect of that determination.

13.0 Notice to complete and remedies on default

13.1 (1) If the sale is not settled on the settlement date, either party may at any time thereafter serve on the other party a settlement notice.

(2) The settlement notice shall be effective only if the party serving it is at the time of service either in all material respects ready, willing, and able to proceed to settle in accordance with this agreement, or is not so ready, willing, and able to settle only by reason of the default or omission of the other party.

(3) If the purchaser is in possession, the vendor's right to cancel this agreement will be subject to sections 28 to 36 of the Property Law Act 2007 and the settlement notice may incorporate or be given with a notice under section 28 of that Act complying with section 29 of that Act.

13.2 Subject to clause 13.1(3), upon service of the settlement notice the party on whom the notice is served shall settle:

(1) on or before the twelfth working day after the date of service of the notice; or

(2) on the first working day after the 13th day of January if the period of twelve working days expires during the period commencing on the 6th day of January and ending on the 13th day of January, both days inclusive,

time being of the essence, but without prejudice to any intermediate right of cancellation by either party.

13.3 (1) If this agreement provides for the payment of the purchase price by instalments and the purchaser fails duly and punctually to pay any instalment on or within one month from the date on which it fell due for payment then, whether or not the purchaser is in possession, the vendor may immediately give notice to the purchaser calling up the unpaid balance of the purchase price, which shall upon service of the notice fall immediately due and payable.

(2) The date of service of the notice under this clause shall be deemed the settlement date for the purposes of clause 13.1.

(3) The vendor may give a settlement notice with a notice under this clause.

(4) For the purposes of this clause a deposit is not an instalment.

13.4 If the purchaser does not comply with the terms of the settlement notice served by the vendor then, subject to clause 13.1(3):

(1) Without prejudice to any other rights or remedies available to the vendor at law or in equity, the vendor may:

(a) sue the purchaser for specific performance; or

(b) cancel this agreement by notice and pursue either or both of the following remedies, namely:

(i) forfeit and retain for the vendor's own benefit the deposit paid by the purchaser, but not exceeding in all 10% of the purchase price; and/or

(ii) sue the purchaser for damages.

(2) Where the vendor is entitled to cancel this agreement, the entry by the vendor into a conditional or unconditional agreement for the resale of the property or any part thereof shall take effect as a cancellation of this agreement by the vendor if this agreement has not previously been cancelled and such resale shall be deemed to have occurred after cancellation.

(3) The damages claimable by the vendor under clause 13.4(1)(b)(ii) shall include all damages claimable at common law or in equity and shall also include (but shall not be limited to) any loss incurred by the vendor on any bona fide resale contracted within one year from the date by which the purchaser should have settled in compliance with the settlement notice. The amount of that loss may include:

(a) interest on the unpaid portion of the purchase price at the interest rate for late settlement from the settlement date to the settlement of such resale; and

(b) all costs and expenses reasonably incurred in any resale or attempted resale; and

(c) all outgoings (other than interest) on or maintenance expenses in respect of the property from the settlement date to the settlement of such resale.

(4) Any surplus money arising from a resale shall be retained by the vendor.

13.5 If the vendor does not comply with the terms of a settlement notice served by the purchaser, then, without prejudice to any other rights or remedies available to the purchaser at law or in equity the purchaser may:

(1) sue the vendor for specific performance; or

(2) cancel this agreement by notice and require the vendor forthwith to repay to the purchaser any deposit and any other money paid on account of the purchase price and interest on such sum(s) at the interest rate for late settlement from the date or dates of payment by the purchaser until repayment.

13.6 The party serving a settlement notice may extend the term of the notice for one or more specifically stated periods of time and thereupon the term of the settlement notice shall be deemed to expire on the last day of the extended period or periods and it shall operate as though this clause stipulated the extended period(s) of notice in lieu of the period otherwise applicable; and time shall be of the essence accordingly. An extension may be given either before or after the expiry of the period of the notice.

13.7 Nothing in this clause shall preclude a party from suing for specific performance without serving a settlement notice.

13.8 A party who serves a settlement notice under this clause shall not be in breach of an essential term by reason only of that party's failure to be ready, willing, and able to settle upon the expiry of that notice.

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14.0 Non-merger

14.1 The obligations and warranties of the parties in this agreement shall not merge with:
(1) the giving and taking of possession;
(2) settlement;
(3) the transfer of title to the property;
(4) delivery of the chattels (if any); or
(5) registration of the transfer of title to the property.

15.0 Goods and Services Tax and Purchase Price Allocation

15.1 If this agreement provides for the purchaser to pay (in addition to the purchase price stated without GST) any GST which is payable in respect of the supply made under this agreement, then:
(1) the purchaser shall pay to the vendor the GST which is so payable in one sum on the GST date;
(2) where the GST date has not been inserted in clause 1.3 of the Conditions of Sale the GST date shall be the settlement date;
(3) where any GST is not so paid to the vendor, the purchaser shall pay to the vendor:
(a) interest at the interest rate for late settlement on the amount of GST unpaid from the GST date until payment; and
(b) any default GST;
(4) it shall not be a defence to a claim against the purchaser for payment to the vendor of any default GST that the vendor has failed to mitigate the vendor's damages by paying an amount of GST when it fell due under the GST Act; and
(5) any sum referred to in this clause is included in the moneys payable by the purchaser on settlement pursuant to clause 5.8(1).

15.2 If the supply under this agreement is a taxable supply, the vendor will deliver a tax invoice to the purchaser on or before the GST date or such earlier date as the purchaser is entitled to delivery of an invoice under the GST Act.

15.3 (1) Without prejudice to the vendor's rights and remedies under clause 15.1, where any GST is not paid to the vendor on or within one month of the GST date, then whether or not the purchaser is in possession, the vendor may immediately give notice to the purchaser calling up any unpaid balance of the purchase price, which shall upon service of the notice fall immediately due and payable.
(2) The date of service of the notice under this clause shall be deemed the settlement date for the purposes of clause 13.1.
(3) The vendor may give a settlement notice under clause 13.1 with a notice under this clause.

15.4 Each party warrants that their response to the statement on the front page regarding purchase price allocation being relevant to the vendor or purchaser/purchaser's nominee for income tax and/or GST purposes is correct.

16.0 Zero-rating

16.1 The vendor warrants that the statement on the front page regarding the vendor's GST registration status in respect of the supply under this agreement and any particulars stated by the vendor in Schedule 1 are correct at the date of this agreement and will remain correct at settlement.

16.2 The purchaser warrants that any particulars stated by the purchaser in Schedule 1 are correct at the date of this agreement.

16.3 Where the particulars stated on the front page regarding the vendor's GST registration status in respect of the supply under this agreement and any particulars stated by the vendor in Schedule 1 indicate that:
(1) the vendor is and/or will be at settlement a registered person in respect of the supply under this agreement;
(2) the recipient is and/or will be at settlement a registered person;
(3) the recipient intends at settlement to use the property for making taxable supplies; and
(4) the recipient does not intend at settlement to use the property as a principal place of residence by the recipient or a person associated with the recipient under section 2A(1)(c) of the GST Act,
GST will be chargeable on the supply under this agreement at 0% pursuant to section 11(1)(mb) of the GST Act.

16.4 If GST is chargeable on the supply under this agreement at 0% pursuant to section 11(1)(mb) of the GST Act, then on or before settlement the purchaser will provide the vendor with the recipient's name, address, and registration number if any of those details are not included in Schedule 1 or they have altered.

16.5 (1) If any of the particulars stated by the purchaser in Schedule 1:
(a) are incomplete; or
(b) alter between the date of this agreement and settlement,
the purchaser shall notify the vendor of the particulars which have not been completed and the altered particulars as soon as practicable before settlement.
(2) The purchaser warrants that any added or altered particulars will be correct as at the date of the purchaser's notification.
(3) If the GST treatment of the supply under this agreement should be altered as a result of the added or altered particulars, the vendor shall prepare and deliver to the purchaser or the purchaser's lawyer an amended settlement statement, if the vendor has already tendered a settlement statement, and a credit note or a debit note, as the case may be, if the vendor has already issued a tax invoice.

16.6 If
(1) the particulars in Schedule 1 state that part of the property is being used as a principal place of residence at the date of this agreement; and
(2) that part is still being so used at the time of the supply under this agreement,
then, the supply of that part will be a separate supply in accordance with section 5(15)(a) of the GST Act.

16.7 If
(1) the particulars stated in Schedule 1 indicate that the recipient intends to use part of the property as a principal place of residence by the recipient or a person associated with the recipient under section 2A(1)(c) of the GST Act; and
(2) that part is the same part as that being used as a principal place of residence at the time of the supply under this agreement,
then the references in clauses 16.3 and 16.4 to "the property" shall be deemed to mean the remainder of the property excluding that part and the references to "the supply under this agreement" shall be deemed to mean the supply under this agreement of that remainder.

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16.8 If the particulars stated on the front page regarding the vendor's GST registration status in respect of the supply under this agreement and any particulars stated by the vendor in Schedule 1 indicate in terms of clause 16.3 that GST will be chargeable on the supply under this agreement at 0% pursuant to section 11(1)(mb) of the GST Act, but any of the particulars stated by the purchaser in Schedule 1 should alter between the date of this agreement and settlement, such that GST no longer becomes chargeable on the supply at 0%, then:

(1) the purchase price shall be plus GST (if any), even if it has been expressed as being inclusive of GST (if any) in the Offer by Tender to Purchase; and

(2) if the vendor has already had to account to the Inland Revenue Department for the GST which is payable in respect of the supply under this agreement and did so on the basis that in accordance with clause 16.3 the GST would be chargeable at 0%, the purchaser shall pay GST and any default GST to the vendor immediately upon demand served on the purchaser by the vendor (and where any GST or default GST is not so paid to the vendor, the purchaser shall pay to the vendor interest at the interest rate for late settlement on the amount unpaid from the date of service of the vendor's demand until payment).

17.0 Supply of a Going Concern

17.1 If there is a supply under this agreement to which section 11(1)(mb) of the GST Act does not apply but which comprises the supply of a taxable activity that is a going concern at the time of the supply, then, unless otherwise expressly stated in this agreement:

(1) each party warrants that it is a registered person or will be so by the date of the supply;

(2) each party agrees to provide the other party by the date of the supply with proof of its registration for GST purposes;

(3) the parties agree that they intend that the supply is of a taxable activity that is capable of being carried on as a going concern by the purchaser; and

(4) the parties agree that the supply made pursuant to this agreement is the supply of a going concern on which GST is chargeable at 0%.

17.2 If it subsequently transpires that GST is payable in respect of the supply and if this agreement provides for the purchaser to pay (in addition to the purchase price without GST) any GST which is payable in respect of the supply made under this agreement, then the provisions of clause 15.0 of this agreement shall apply.

18.0 Limitation of Liability

18.1 If a person enters into this agreement as trustee of a trust and is not a beneficiary of the trust, then that person will be known as an "independent trustee" and clauses 18.2 and 18.3 will apply.

18.2 The liability of an independent trustee under this agreement is limited to the extent of the indemnity from the assets of the trust available to the independent trustee at the time of enforcement of that indemnity.

18.3 However, if the entitlement of the independent trustee to be indemnified from the trust assets has been lost or impaired (whether fully or in part) by reason of the independent trustee's act or omission (whether in breach of trust or otherwise), then the limitation of liability in clause 18.2 does not apply, and the independent trustee will be personally liable up to the amount that would have been indemnified from the assets of the trust had the indemnity not been lost.

19.0 Overseas Investment Act Consent not required

19.1 The purchaser warrants that the purchaser does not require OIA Consent or that the purchaser has obtained OIA Consent.

20.0 Counterparts

20.1 This agreement may be executed and delivered in any number of counterparts (including scanned and emailed PDF counterparts).

20.2 Each executed counterpart will be deemed an original and all executed counterparts together will constitute one (and the same) instrument.

20.3 This agreement shall not come into effect until each person required to sign has signed at least one counterpart and both vendor and purchaser have received a counterpart signed by each person required to sign.

20.4 If the parties cannot agree on the date of this agreement, and counterparts are signed on separate dates, the date of the agreement is the date on which the last counterpart was signed and delivered to all parties.

21.0 Agency

21.1 If the name of a licensed real estate agent is recorded on this agreement, it is acknowledged that the sale evidenced by this agreement has been made through that agent whom the vendor has appointed as the vendor's agent according to an executed agency agreement.

21.2 The scope of the authority of the agent under clause 21.1 does not extend to making an offer, counteroffer, or acceptance of a purchaser's offer or counteroffer on the vendor's behalf without the express authority of the vendor for that purpose. That authority, if given, should be recorded in the executed agency agreement.

21.3 The vendor shall be liable to pay the agent's charges including GST in accordance with the executed agency agreement.

22.0 Collection of Sales Information

22.1 Once this agreement has become unconditional in all respects, the agent referred to in clause 21.0 may provide certain information relating to the sale to REINZ.

22.2 This information includes the sale price, address and other details about the property. The information is stored on a secure password protected network under REINZ's control.

22.3 REINZ combines this information with other property and market information and uses it itself or makes it available to real estate agencies and valuers, and other third parties (or service providers to any of them) for the following purposes:

(1) provision of appraisals and valuations to prospective vendors or purchasers of properties in the same area as the property;

(2) publication of reports and guidance on the real estate market nationally or in particular locations; and

(3) research, statistical, and predictive analysis for internal use or publication.

22.4 The information provided to REINZ under clause 22.1 does not specifically identify either of the parties to this agreement but may be combined with other information in the databases maintained by REINZ or other recipients, resulting in it becoming personal information under the Privacy Act 2020. Either party is therefore entitled to request access to and correction of any personal information held by REINZ by contacting REINZ at info@reinz.co.nz or by post or telephone.

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23.0 COVID-19 / Pandemic Provisions

23.1 The parties acknowledge that the Government of New Zealand or a Minister of that Government may, as a result of public health risks arising from a Pandemic, order restrictions on personal movement pursuant to the COVID-19 Public Health Response Act 2020 (or other legislation), and the effect of such restrictions may be that personal movement within or between particular regions is unlawful for the general population of those regions.

23.2 Where such a legal restriction on personal movement exists either nationally or in the region or district where the property is located:

(1) The date for satisfaction of any condition that has not yet been satisfied or waived will be the later of:

(a) the date that is 10 working days after the restriction on personal movement in the region or district in which the property is located is removed; or

(b) the date for satisfaction of the condition as stated elsewhere in this agreement.

(2) The settlement date will be the later of:

(a) the date that is 10 working days after all conditions (if any) are satisfied or waived; or

(b) the date that is 10 working days after the date on which the restriction on personal movement in the region or district in which the property is located is removed; or

(c) the settlement date as stated elsewhere in this agreement.

(3) Nothing in the previous provisions of this clause is to have the effect of bringing forward a date specified in this agreement.

23.3 Clause 23.2 applies whether such legal restriction on personal movement exists at, or is imposed after, the date of this agreement, and on each occasion such restriction is imposed.

23.4 Neither party will have any claim against the other for a deferral of a condition date or the settlement date under this clause 23.0.

23.5 For the purposes of this clause 23.0, "Pandemic" means the COVID-19 pandemic, or such other pandemic or epidemic that gives rise to Government orders restricting personal movement.

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FURTHER TERMS OF SALE

Further Terms continued on Appendix page

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SCHEDULE 1

(GST Information – see clause 16.0)

This Schedule must be completed if the vendor has stated on the front page that the vendor is registered under the GST Act in respect of the transaction evidenced by this agreement and/or will be so registered at settlement. Otherwise there is no need to complete it.

Section 1 Vendor		
1(a)	The vendor's registration number (if already registered): 048-100-570	
1(b)	(i) All of the property is being used as a principal place of residence at the date of this agreement.	~~Yes/~~No~~/NA~~
	(ii) The supply of all of the property will be a taxable supply.	~~Yes/~~No~~/NA~~
	(iii) Part of the property is being used as a principal place of residence at the date of this agreement	Yes~~/No/NA~~
	(iv) That part is: Main Residence (e.g. "the main farmhouse" or "the apartment above the shop")	
	(v) The supply of that part described in 1(b)(iv) will be a taxable supply.	~~Yes/~~No~~/NA~~
Section 2 Purchaser		
2(a)	The purchaser is registered under the GST Act and/or will be so registered at settlement.	Yes/No
2(b)	The purchaser intends at settlement to use the property for making taxable supplies.	Yes/No
If the answer to either or both of questions 2(a) and 2(b) is "No", go to question 2(e).		
2(c)	The purchaser's details are as follows: (i) Full name:	
	(ii) Address:	
	(iii) Registration number (if already registered):	
2(d)	The purchaser intends at settlement to use the property as a principal place of residence by the purchaser or by a person associated with the purchaser under section 2A(1)(c) of the GST Act (connected by blood relationship, marriage, civil union, de facto relationship or adoption). **OR** The purchaser intends at settlement to use part of the property (and no other part) as a principal place of residence by the purchaser or by a person associated with the purchaser under section 2A(1)(c) of the GST Act. That part is: (e.g. "the main farmhouse" or "the apartment above the shop")	Yes/No Yes/No
2(e)	The purchaser intends to direct the vendor to transfer title to the property to another party ("nominee").	Yes/No
If the answer to question 2(e) is "Yes", then please continue. Otherwise, there is no need to complete this Schedule any further.		
Section 3 Nominee		
3(a)	The nominee is registered under the GST Act and/or is expected by the purchaser to be so registered at settlement.	Yes/No
3(b)	The purchaser expects the nominee at settlement to use the property for making taxable supplies.	Yes/No
If the answer to either or both of questions 3(a) and 3(b) is "No", there is no need to complete this Schedule any further.		
3(c)	The nominee's details (if known to the purchaser) are as follows: (i) Full name:	
	(ii) Address:	
	(iii) Registration number (if already registered):	
3(d)	The purchaser expects the nominee to intend at settlement to use the property as a principal place of residence by the nominee or by a person associated with the nominee under section 2A(1)(c) of the GST Act (connected by blood relationship, marriage, civil union, de facto relationship or adoption). **OR** The purchaser expects the nominee to intend at settlement to use part of the property (and no other part) as a principal place of residence by the nominee or by a person associated with the nominee under section 2A(1)(c) of the GST Act. That part is: (e.g. "the main farmhouse" or "the apartment above the shop")	Yes/No Yes/No

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SCHEDULE 2

List all chattels included in the sale

(Strike out or add as applicable. If necessary complete on a separate schedule or the further terms of sale)

~~**Stove**~~	( )	**Rangehood**	( )	**Wall/under bench oven**	( )	~~**Cooktop/hob**~~	( )
Dishwasher	( )	~~**Kitchen waste disposal**~~	( )	~~**Smoke detectors**~~	( )	~~**Bathroom extractor fans**~~	( )
~~**Security alarm**~~	( )	~~**Heated towel rail**~~	( )	**Heat pump**	(1)	~~**Garage door remote control**~~	( )
~~**Garden shed**~~	( )	**Light fittings**		~~**Window coverings**~~		**Fixed floor coverings**	
~~**Automatic garage door facility**~~							

Aircon/Heat Pump remote x1, Blinds, Clothesline, Freestanding Fire, Extractor Fan, Gas Hob, Oven - Electric, Washing Machine Taps, Water Pumps, Curtains, Gas Hot Water Service.
Farm Chattels: Shearing Machines, Wool press & Comb, Cutter Sharpener, Cattle Crush, All water pumps (Number of pumps TBA), Electric Fence Unit/s, Coll room located in Meat Processing room (by woolshed), All Fence Gates.

Both parties should check that Schedule 2 (list of chattels) includes an accurate list of all items which are included with the sale and purchase (in addition to, or as part of any building).

SCHEDULE 3

Residential Tenancies

Name of Tenant(s): Ray Nicklin

Rent: $0 **Term:** 18 months **Bond:** **Pet Bond:**

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Commercial/Industrial Tenancies

(If necessary complete on a separate schedule)

1. Name of Tenant(s):

Rent: **Term:** **Right of Renewal:** **Other:**

2. Name of Tenant(s):

Rent: **Term:** **Right of Renewal:** **Other:**

3. Name of Tenant(s):

Rent: **Term:** **Right of Renewal:** **Other:**

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BEFORE SIGNING A TENDER

- It is recommended you seek professional advice before signing and lodging this tender. **You should always get legal advice before lodging a tender and throughout the buying and selling process.**
- TLANZ and REINZ accept no liability whatsoever in respect of this document and any agreement which may arise from it.
- The vendor should check the correctness of all warranties made under clause 9, clause 10, and elsewhere in this agreement.
- In the case of a unit title, before the purchaser submits a tender and/or signs this Offer by Tender to Purchase, the vendor must provide to the purchaser a pre-contract disclosure statement under section 146 of the Unit Titles Act.
- The transaction may have tax implications for the parties and it is recommended that both parties seek their own professional advice regarding the tax implications of the transaction, including:
  - the GST treatment of the transaction, which depends upon the GST information supplied by the parties and could change before settlement if that information changes; and
  - the income tax treatment of the transaction, including any income tax implications of purchase price allocation.
- You should read the Conduct of Tender in clause 2.0.

PROFESSIONAL ADVICE SHOULD BE SOUGHT REGARDING THE EFFECT AND CONSEQUENCES OF ANY AGREEMENT ENTERED INTO BETWEEN THE PARTIES.
YOU SHOULD KEEP A COPY OF THIS FORM WHEN LODGING YOUR TENDER.

OFFER BY TENDER TO PURCHASE

PURCHASER'S NAME: **and/or nominee** ("the purchaser")

offers by tender to purchase the property and the chattels included in the sale on the Particulars and Conditions of Sale, General Terms of Sale and Further Terms of Sale (if any) set out above for a purchase price of:

Purchase price: $ **Plus GST** (if any) OR ~~**Inclusive of GST**~~ ~~(if any)~~

If neither is deleted, the purchase price includes GST (if any)

[A tender offer must state the purchase price as an exact dollar amount without reference to any calculation, variation, or to the purchase price contained in any other tender]

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Acknowledgements

Where this agreement relates to the sale of a residential property and this agreement was provided to the parties by a licensed real estate agent, or by a licensee on behalf of the agent, the parties acknowledge that they have been given the guide about the sale of residential property approved by the Real Estate Agents Authority, and a copy of the agency's in-house complaints and dispute resolution process.

The person or persons signing this agreement acknowledge that either:

(a) they are signing in a personal capacity as the 'vendor' named on the front page or 'purchaser' named above, or
(b) they have authority to bind the party named as 'vendor' named on the front page or 'purchaser' named above.

WARNING (This warning does not form part of this agreement)
Before signing, each party should read this entire contract and should obtain all relevant professional advice.
This is a binding contract. Once signed, you will be bound by the terms of it and there may be no, or only limited, rights to terminate it.

Signature of purchaser(s):

Name:	**Name:**
Director / Trustee / Authorised Signatory / Agent / Attorney*	**Director / Trustee / Authorised Signatory / Agent / Attorney***
Delete the options that do not apply	*Delete the options that do not apply*
If no option is deleted, the signatory is signing in their personal capacity	*If no option is deleted, the signatory is signing in their personal capacity*

ACCEPTANCE OF TENDER

The vendor accepts this offer by tender from the purchaser.

Signature of vendor(s):

Name:	**Name:**
Director / Trustee / Authorised Signatory / Agent / Attorney*	**Director / Trustee / Authorised Signatory / Agent / Attorney***
Delete the options that do not apply	*Delete the options that do not apply*
If no option is deleted, the signatory is signing in their personal capacity	*If no option is deleted, the signatory is signing in their personal capacity*

Date:

*If this agreement is signed under:

(i) a Power of Attorney – please attach a **Certificate of non-revocation** (available from TLANZ: 4098WFP or REINZ); or
(ii) an Enduring Power of Attorney – please attach a **Certificate of non-revocation and non-suspension of the enduring power of attorney** (available from TLANZ: 4997WFP or REINZ).

Also insert the following wording for the Attorney's Signature above:
Signed for [full name of the donor] by his or her Attorney [attorney's signature].

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PARTICULARS AND CONDITIONS OF SALE OF REAL ESTATE BY TENDER

Address of Property: 77 Remiger Road, Puhoi, Auckland City

Closing Date & Time:

Delivery Address for Tenders: Colliers Matamata, 3/25 Tainui Street, Matamata

VENDOR:
Raymond Charles Nicklin as to 1/2 share and Desma Elizabeth Nicklin as to a 1/2 share

Contact Details:

Ph: 027 479 59 22

VENDOR'S LAWYERS:
Firm: The Legal Team
Individual Acting: Nicolene Du Toit
Email: nicolene@thelegalteam.co.nz
Contact Details: G2/2 Milner Avenue

Silverdale 932
Ph: 09 959 0481

Email Address for Service of Notices (clause 3.4)**:**

PURCHASER:

Contact Details:

PURCHASER'S LAWYERS:
Firm:
Individual Acting:
Email:
Contact Details:

Email Address for Service of Notices (clause 3.4)**:**

LICENSED REAL ESTATE AGENT LISTING PROPERTY: Waikato CR Limited
Colliers Rural Waikato

Manager: Mr Logan Fraser Niederer
Salesperson: Clinton Brereton clint.brereton@colliers.com (027 897 1161)
Second Salesperson:
Contact Details: Ph: 07 261 1038
lisa.young@colliers.com
25 Tainui Street
Matamata 3400
Licensed Real Estate Agent under Real Estate Agents Act 2008

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TLANZ/REINZ Particulars and Conditions of Sale of Real Estate by Tender, Sixth Edition 2022 (3) – Tax Purchase Price Allocation Changes – Addendum

This addendum sets out further terms and a schedule concerning the allocation of the purchase price for tax purposes. As set out in further detail in this document, key aspects of this addendum are:

1. Up front instructions regarding use of the addendum.

2. An interpretation provision regarding terms used in the Income Tax Act 2007 and new definitions of "Agreed allocation", "Assets", "Tax asset classes" and "Tax position".

3. Clause 24.0 dealing with purchase price allocation (which may be relevant not only for income tax purposes but also for GST purposes).

4. Schedule 4 that can be used by the parties to record an agreed allocation of the purchase price, if such an allocation is agreed at the date of the agreement (and again this may be relevant not only for income tax purposes but also for GST purposes).

ADDENDUM TO PARTICULARS AND CONDITIONS OF SALE OF REAL ESTATE BY TENDER FURTHER TERMS OF SALE AND SCHEDULE – TAX PURCHASE PRICE ALLOCATION

This addendum provides for the parties to deal with the allocation, for tax purposes, of the purchase price under the agreement to which this addendum relates. The addendum should be added to relevant agreements entered into on or after 1 July 2021.

This addendum does not need to be used where:

(a) the sale is of residential land (as defined in the Income Tax Act 2007) and associated chattels only, and the purchase price (inclusive of GST, if any) is less than $7,500,000; or

(b) the sale is not, or is not limited to, residential land and associated chattels, and the purchase price (inclusive of GST, if any) is less than $1,000,000;

and also does not need to be used in various other circumstances.

Before signing the agreement, the parties should seek professional advice regarding the tax treatment of the transaction.

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VENDOR: Raymond Charles Nicklin as to 1/2 share and Desma Elizabeth Nicklin as to a 1/2 share

PURCHASER:

PROPERTY ADDRESS: 77 Remiger Road, Puhoi, Auckland City

INSTRUCTIONS

If the parties have agreed an allocation of the purchase price to the assets or classes of asset included in the transaction, use Schedule 4 to record the agreed allocation. Clause 24.2 will then apply to the agreed allocation. This is the recommended and preferred approach.

If the parties do not agree an allocation on or before the date of the agreement and the default purchase price allocation rules under section GC 21 of the Income Tax Act 2007 would apply in the absence of an agreed allocation, then clause 24.3 will require an agreed allocation. That agreed allocation will need to be determined either by the parties or by a suitably qualified third party expert.

FURTHER TERMS OF SALE

The following Further Terms of Sale are added to, and form part of, the agreement to which this addendum relates:

24 Purchase Price Allocation

Definitions

24.1 In this clause 24 and in Schedule 4:

(1) *Unless the context requires a different interpretation, words and phrases not otherwise defined in the agreement have the same meanings ascribed to those words and phrases in the GST Act and the Income Tax Act 2007.*

(2) *"Agreed allocation" means an allocation of the purchase price to the assets, or to classes of asset included in the assets, that is agreed by the parties and recorded in writing, using Schedule 4 or otherwise, and includes an allocation agreed by the parties in accordance with clause 24.4.*

(3) *"Assets" means the property or assets comprising the property and any chattels and other assets included in the transaction described in this agreement.*

(4) *"Tax asset classes" means the following classes of purchased property referred to in sections GC 20(1)(a) and GC 21(1)(a) of the Income Tax Act 2007:*

(a) *trading stock other than timber or the right to take timber (which includes land whose disposal would produce income for the relevant party under any of sections CB 6A to CB 15 and CZ 39 of the Income Tax Act 2007);*

(b) *timber or the right to take timber;*

(c) *depreciable property other than buildings;*

(d) *buildings that are depreciable property;*

(e) *financial arrangements; and*

(f) *property for which the disposal does not give rise to assessable income for the vendor or deductions for the purchaser or (if applicable) purchaser's nominee.*

(5) *"Tax position", in relation to any person, includes the person's tax position for income tax purposes and for GST purposes (as applicable) and their completion of any related tax returns and other documents.*

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Effect of agreed allocation

24.2 In relation to any agreed allocation, each party confirms and agrees that:

(1) *the agreed allocation allocates the purchase price, or is sufficient to determine the allocation of the purchase price, to each tax asset class included in the transaction for the party; and*

(2) *the agreed allocation reflects the relative market value of each tax asset class included in the transaction, proportional to the other tax asset class or classes included in the transaction, as at the date of this agreement (but this clause 24.2(2) does not apply if and to the extent that the tax asset class is, or includes, low value depreciable property to which section GC 20(3) of the Income Tax Act 2007 applies); and*

(3) *the party must determine their tax position in a manner consistent with the agreed allocation.*

Requirement to agree allocation

24.3 If:

(1) there is no agreed allocation as at the date of this agreement; and

(2) without an agreed allocation, the purchase price allocation rules under section GC 21 of the Income Tax Act 2007 would apply; and

(3) for the purposes of that section, in relation to each of the vendor and the purchaser (or, if applicable, purchaser's nominee), the transaction includes two or more tax asset classes for which the relevant party uses different income tax treatments,

then the parties must agree an allocation of the purchase price in accordance with clause 24.4.

24.4 If this clause 24.4 applies (in accordance with clause 24.3):

(1) the parties must agree and record in writing an allocation of the purchase price, which shall be an agreed allocation to which clause 24.2 applies, by the settlement date or as soon as practicable after the settlement date, but no later than 60 working days after that date;

(2) the parties must not notify any allocation of the purchase price to the Commissioner, and must not file any return of income in relation to their tax position for any of the assets included in the transaction, until there is an agreed allocation;

(3) the agreed allocation will be determined either by the parties or by an experienced registered valuer or other suitably-qualified professional expert ("expert") appointed in accordance with clause 24.4(5);

(4) to facilitate the parties' determination of the agreed allocation:

(a) if neither party has proposed an allocation as at the date of this agreement, the vendor must propose an allocation to the purchaser by no later than 5 working days after the date of this agreement; and

(b) following the proposal of an allocation by either party, the parties must use reasonable endeavours to determine the agreed allocation; and

(5) if the agreed allocation has not been determined by the parties by the settlement date, or the parties have agreed to refer the matter to an expert:

(a) the agreed allocation will be determined by an expert, and the parties will be deemed to have agreed to that allocation;

(b) the parties must use all reasonable endeavours to appoint, and refer the matter to, an agreed expert by no later than 5 working days after the settlement date;

(c) if no agreed expert has been appointed within that timeframe, the appointment will be made, on the application of both parties or either party no later than 10 working days after the settlement date, by the president;

(d) if an expert is appointed, the parties must co-operate with and promptly provide any information or documents required by the expert and the expert's costs will be met equally by the parties, unless the expert determines otherwise; and

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(e) *where a determination is made by the expert, the expert shall not be liable to either party for costs or losses that either party may claim to have suffered in respect of that determination; and*

(f) *where the expert is appointed by the president, the president shall not be liable to either party for any costs or losses that either party may claim to have suffered in respect of that determination.*

Adjustments and other matters

24.5 *If there is any adjustment to the purchase price after the parties have an agreed allocation, that agreed allocation will be amended as follows and clause 24.2 will apply to the amended allocation:*

(1) *if the adjustment relates to one asset or class of asset, the adjustment will be made to the amount allocated to that asset or class of asset; and*

(2) *if the adjustment relates to all or any two or more assets or classes of asset, a pro rata adjustment will be made to the amounts allocated to the relevant assets or classes of asset.*

24.6 *For the purposes of this clause 24.0 and Schedule 4:*

(1) *if the total consideration for the assets includes any consideration in addition to the purchase price, references to the purchase price are to be read as references to the total consideration; and*

(2) *where the purchaser directs the vendor to transfer the assets to a nominee, the purchaser must ensure that the nominee complies with the provisions of this clause 24.0 as if the nominee were a party to this agreement.*

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SCHEDULE

The following schedule is added to, and forms part of, the agreement to which this addendum relates:

SCHEDULE 4
(Agreed Purchase Price Allocation – see clause 24.2)

The table in this Schedule may be used by the parties for the purpose of recording an agreed allocation of the purchase price to the assets and/or classes of asset included in the transaction evidenced by the agreement, for income tax and/or GST purposes.

The asset/asset class description for allocating the purchase price (e.g. "land, building, fit out/chattels", or "farm, farm equipment, dwelling/curtilage, chattels", or "land, timber") will depend upon the nature of the assets included in the transaction and the purpose(s) of the purchase price allocation. For income tax purposes, if the assets included in the transaction include two or more tax asset classes for either party, that party should ensure that the purchase price allocation in the table is sufficient to determine the amount of the purchase price allocated to each tax asset class.

If the purchase price is "plus GST (if any)" under the agreement, the amounts in the table are "plus GST (if any)" unless otherwise expressly stated. If the purchase price is "inclusive of GST (if any)" under the agreement, the amounts in the table are "inclusive of GST (if any)" unless otherwise expressly stated.

Description of Asset/Asset Class	***Amount Allocated***
	$
	$
	$
	$
	$
	$
	$
	$
	$
	$
Total amount	$

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WARNING: *If the parties do not agree an allocation of the purchase price to the assets and/or classes of asset included in the transaction on or before the date of the agreement, as provided for in this Schedule, an agreed allocation determined by the parties or an expert may be required under clauses 24.3 and 24.4.*

Appendix

25.0 Deposit

Further to clause 2.3 herein, the payment for the deposit, equivalent to 10% (ten percent) of the purchase price, is to be made payable to Waikato CR Ltd trust account (03-1549-0226175-05).

26.0 Residential Land Statement & Customer Due Diligence

The purchaser acknowledges that they have been advised prior to entering into this agreement of their requirement to complete a Residential Land Statement with their solicitor, confirming their eligibility to buy property in New Zealand under the Overseas Investment Act 2005. The purchaser further acknowledges that they have been advised that their solicitor must complete customer due-diligence under the Anti-Money Laundering and Countering Financing of Terrorism Act 2009. Should consent and due diligence not be granted prior to settlement, the purchasers may forfeit their deposit and incur liability to the vendor.

27.0 Independent and/or Specialist Advice

The Purchaser acknowledges that:
(a) the agent has recommended prior to the contract becoming unconditional they should consider independent legal, building, or specialist advice in relation to the property and have satisfactory confirmation that the property can be insured, and/or ordered a LIM report.
(b) they purchase this property solely in reliance on the Purchaser's own judgement in relation to the potential or actual contamination of the property and that they have been advised of the option of obtaining an appropriate professional report.

28.0 REAA Complaints and Disputes Process

The vendor and the purchaser both acknowledge that before signing this agreement that they have been made aware of the Agents in house complaints and dispute resolution process. The vendor and the purchaser have also been advised that they may access the REAA complaints and process and additional information at www.reaa.govt.nz without first using that in house process and that any use of the in house process does not preclude them making a complaint to the REAA.

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April 2026

29.0 Fencing and Boundaries

The Purchaser acknowledges that certain existing fences on the property are not located precisely on the legal boundaries generally due to the terrain.

The Purchaser accepts the property in its current condition and acknowledges that the existing fence lines represent the agreed practical boundaries with neighbouring properties.

The Vendor shall have no obligation to realign or reconstruct any fencing, and the Purchaser shall have no right to compensation, objection, or delay of settlement on this basis. Following settlement, the Purchaser shall not raise any claim, requisition, or dispute in relation to the location or condition of any fencing.

30.0 Vendor's Continued Occupation of Dwelling

As a condition of this Tender, the Purchaser acknowledges and agrees that the Vendor shall be entitled to remain in occupation of the dwelling currently occupied by the Vendor following settlement for a period of up to 18 months from the Settlement Date.

The terms and conditions of the Vendor's continued occupation, including (but not limited to) the area to be occupied, rental or other consideration, payment of outgoings, maintenance responsibilities, insurance, access, and the final date for vacant possession, shall be agreed between the Vendor and Purchaser and recorded in a separate written agreement prior to settlement.

The Vendor shall provide vacant possession of the dwelling no later than 18 months following the Settlement Date, unless otherwise agreed in writing by both parties.

31.0 Good Husbandry

The Vendor shall pending possession being given and taken properly farm the property and attend to the livestock in accordance with the accepted and usual practices of the district and in particular will not overstock the property or do anything to impoverish the soil or remove or damage any improvement of fixtures on the property.

32.0 Ornamental Trees

The parties agree that the trees growing on the property are ornamental and incidental trees as defined by Section CJ1(2)(a) of the Income Tax Act 1994 and accordingly have no commercial value.

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RECORD OF TITLE
UNDER LAND TRANSFER ACT 2017
FREEHOLD

Search Copy

R.W. Muir
Registrar-General
of Land

Identifier **974873**

Land Registration District **North Auckland**

Date Issued 15 September 2021

Prior References
NA127B/898

Estate Fee Simple

Area 635 square metres more or less

Legal Description Lot 9 Deposited Plan 541977

Registered Owners

Raymond Charles Nicklin as to a 1/2 share

Desma Elizabeth Nicklin as to a 1/2 share

Interests

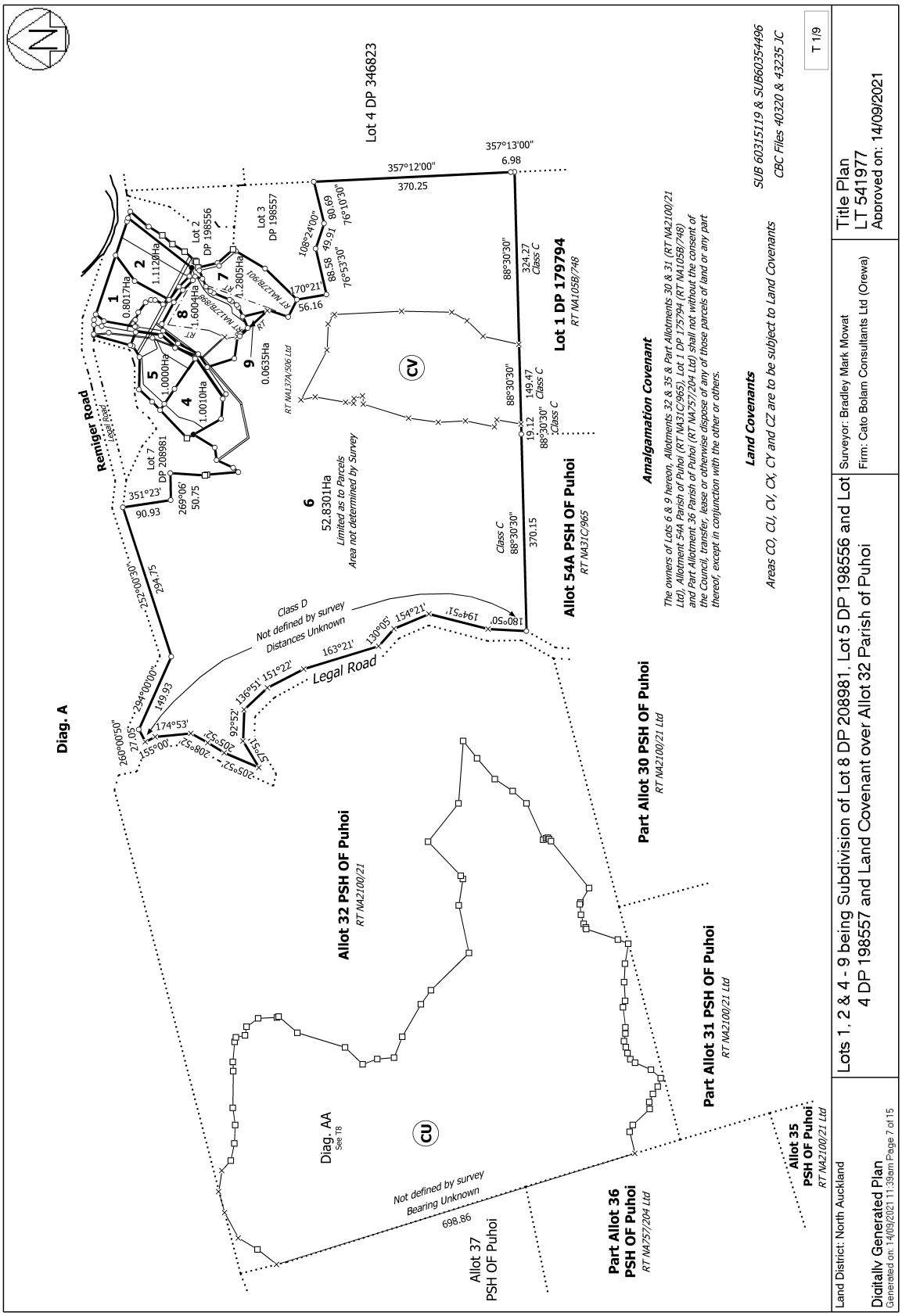
Appurtenant hereto is a right of way and telecommunications and electricity rights specified in Easement Certificate D460766.5 - produced 9.12.1999 at 12.34 pm and entered 1.2.2000 at 9.00 am

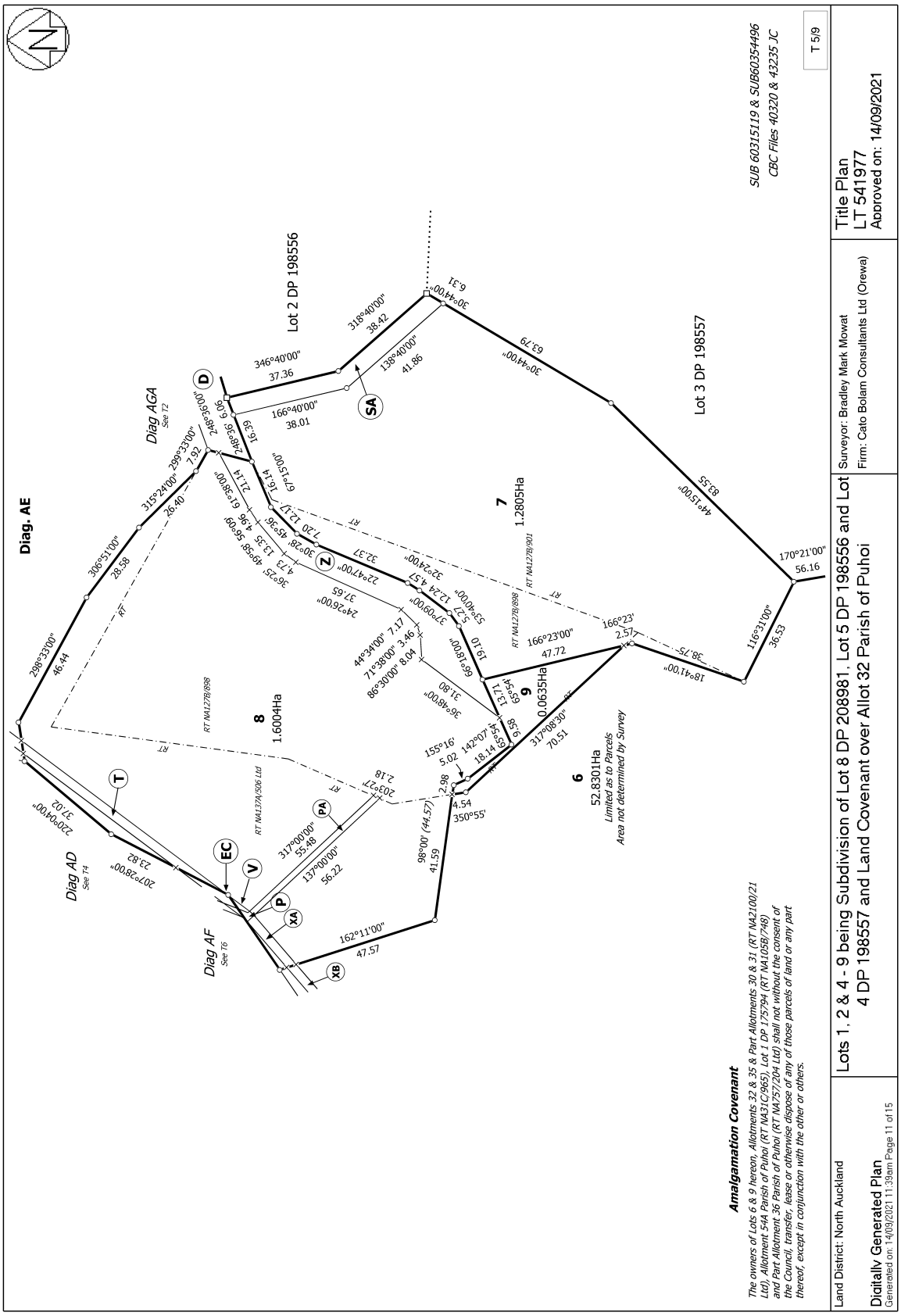
Some of the easements specified in Easement Certificate D460766.5 are subject to Section 243 (a) Resource Management Act 1991 (see DP 198556)

12243692.8 Consent Notice pursuant to Section 221 Resource Management Act 1991 - 15.9.2021 at 12:21 pm

Appurtenant hereto is a right of way and a right to convey electricity and telecommunications created by Easement Instrument 12243692.12 - 15.9.2021 at 12:21 pm

12888387.3 COVENANT UNDER SECTION 240 RESOURCE MANAGEMENT ACT 1991 (ALSO AFFECTS 1159734, NA105B/748, NA2100/21, NA31C/965 and NA757/204) - 23.6.2025 at 3:08 pm


Lot 4 DP 346823
357°13'00"
6.98
357°12'00"
370.25
Remiger Road
Legal Road
Lot 2 DP 198556
Lot 3 DP 198557
Lot 7 DP 208981
1 0.8017Ha
2 1.1120Ha
4 1.0010Ha
5 1.0000Ha
7 0.2805Ha
8 1.6004Ha
9 0.0635Ha
RT NA137A/506 Ltd
6 52.8301Ha
Limited as to Parcels
Area not determined by Survey
Lot 1 DP 179794
RT NA1058/748
Allot 54A PSH OF Puhoi
RT NA31C/965
Class C
Class D
Not defined by survey
Distances Unknown
Legal Road
Allot 32 PSH OF Puhoi
RT NA2100/21
Part Allot 30 PSH OF Puhoi
RT NA2100/21 Ltd
Part Allot 31 PSH OF Puhoi
RT NA2100/21 Ltd
Part Allot 36 PSH OF Puhoi
RT NA757/204 Ltd
Allot 35 PSH OF Puhoi
RT NA2100/21 Ltd
Allot 37 PSH OF Puhoi
Diag. AA
See T8
Not defined by survey
Bearing Unknown
698.86
Diag. A
Amalgamation Covenant
The owners of Lots 6 & 9 hereon, Allotments 32 & 35 & Part Allotments 30 & 31 (RT NA2100/21 Ltd), Allotment 544 Parish of Puhoi (RT NA31C/965), Lot 1 DP 175794 (RT NA1058/748) and Part Allotment 36 Parish of Puhoi (RT NA757/204 Ltd) shall not without the consent of the Council, transfer, lease or otherwise dispose of any of those parcels of land or any part thereof, except in conjunction with the other or others.
Land Covenants
Areas CO, CU, CV, CX, CY and CZ are to be subject to Land Covenants
SUB 60315119 & SUB60354496
CBC Files 40320 & 43235 JC
T 1/9
Land District: North Auckland
Lots 1, 2 & 4 - 9 being Subdivision of Lot 8 DP 208981, Lot 5 DP 198556 and Lot 4 DP 198557 and Land Covenant over Allot 32 Parish of Puhoi
Surveyor: Bradley Mark Mowat
Firm: Cato Bolam Consultants Ltd (Orewa)
Title Plan
LT 541977
Approved on: 14/09/2021
Digitally Generated Plan
Generated on: 14/09/2021 11:39am Page 7 of 15


Diag. AE
Diag AD
See T4
Diag AF
See T6
Diag AGA
See T2
Lot 2 DP 198556
Lot 3 DP 198557
RT NA127B/898
RT NA127B/901
RT NA137A/506 Ltd
RT
6
52.8301Ha
Limited as to Parcels
Area not determined by Survey
7
1.2805Ha
8
1.6004Ha
9
0.0635Ha
SUB 60315119 & SUB60354496
CBC Files 40320 & 43235 JC
T 5/9
Amalgamation Covenant
The owners of Lots 6 & 9 hereon, Allotments 32 & 35 & Part Allotments 30 & 31 (RT NA2100/21 Ltd), Allotment 54A Parish of Puhoi (RT NA31C/965), Lot 1 DP 175794 (RT NA105B/748) and Part Allotment 36 Parish of Puhoi (RT NA757/204 Ltd) shall not without the consent of the Council, transfer, lease or otherwise dispose of any of those parcels of land or any part thereof, except in conjunction with the other or others.
Land District: North Auckland
Digitally Generated Plan
Generated on: 14/09/2021 11:39am Page 11 of 15
Lots 1, 2 & 4 - 9 being Subdivision of Lot 8 DP 208981, Lot 5 DP 198556 and Lot 4 DP 198557 and Land Covenant over Allot 32 Parish of Puhoi
Surveyor: Bradley Mark Mowat
Firm: Cato Bolam Consultants Ltd (Orewa)
Title Plan
LT 541977
Approved on: 14/09/2021

RECORD OF TITLE
UNDER LAND TRANSFER ACT 2017
FREEHOLD
Limited as to Parcels
Search Copy

R.W. Muir
Registrar-General
of Land

Identifier **1159734**
Land Registration District **North Auckland**
Date Issued 23 June 2025

Prior References
911735

Estate Fee Simple
Area 52.0191 hectares more or less
Legal Description Lot 6 Deposited Plan 598139
Registered Owners
Raymond Charles Nicklin as to a 1/2 share
Desma Elizabeth Nicklin as to a 1/2 share

Interests

Subject to an electricity right (in gross) over part marked C on DP 598139 in favour of (now) Vector Limited created by Transfer C640690.1 - 15.8.1994 at 9.17 am

Appurtenant hereto are electricity rights specified in Easement Certificate D460766.5 - produced 9.12.1999 at 12:34 pm and entered 1.2.2000 at 9:00 am

Some of the easements specified in Easement Certificate D460766.5 are subject to Section 243 (a) Resource Management Act 1991 (see DP 198556)

Subject to a right of way over part marked B, C & D and to telecommunications rights over part marked B, C, D, NA, K & O and to an electricity right over part marked O, U & TA all on DP 598139 specified in Easement Certificate D460766.5 - produced 9.12.1999 at 12:34 pm and entered 1.2.2000 at 9:00 am

Subject to a right of way and to a telecommunications right over part marked B, C & D on DP 598139 specified in Easement Certificate D611644.6 - produced 11.6.2001 at 9:00 am and entered 2.7.2001 at 9:00 am

Subject to a right to transmit electricity over part marked U, TA, YA, Y, YC, XA & O and a right to a telecommunications easement over part marked NA, K, YA, Y, YC, XA & O all on DP 598139 created by Easement Instrument 6170820.9 - 5.10.2004 at 9:00 am

Appurtenant hereto is a right to convey water and electricity created by Easement Instrument 8505466.1 - 28.5.2010 at 1:07 pm

Subject to a right (in gross) to convey electricity over part marked F & G on DP 598139 in favour of Vector Limited created by Easement Instrument 9236051.4 - 16.11.2012 at 12:04 pm

12243692.8 Consent Notice pursuant to Section 221 Resource Management Act 1991 - 15.9.2021 at 12:21 pm

Appurtenant hereto is a right of way and a right to convey water, electricity and telecommunications created by Easement Instrument 12243692.10 - 15.9.2021 at 12:21 pm

The easements created by Easement Instrument 12243692.10 are subject to Section 243 (a) Resource Management Act 1991

Subject to a right of way and a right to convey water, electricity and telecommunications over part marked EE, EA, EB, EC, G, NA, O, U & ED on DP 598139 created by Easement Instrument 12243692.10 - 15.9.2021 at 12:21 pm

Subject to a right (in gross) to convey electricity over part marked O, U, TA, YC & XA on DP 598139 in favour of Vector Limited created by Easement Instrument 12243692.11 - 15.9.2021 at 12:21 pm

Appurtenant hereto is a right of way and a right to convey electricity and telecommunications created by Easement Instrument 12243692.12 - 15.9.2021 at 12:21 pm

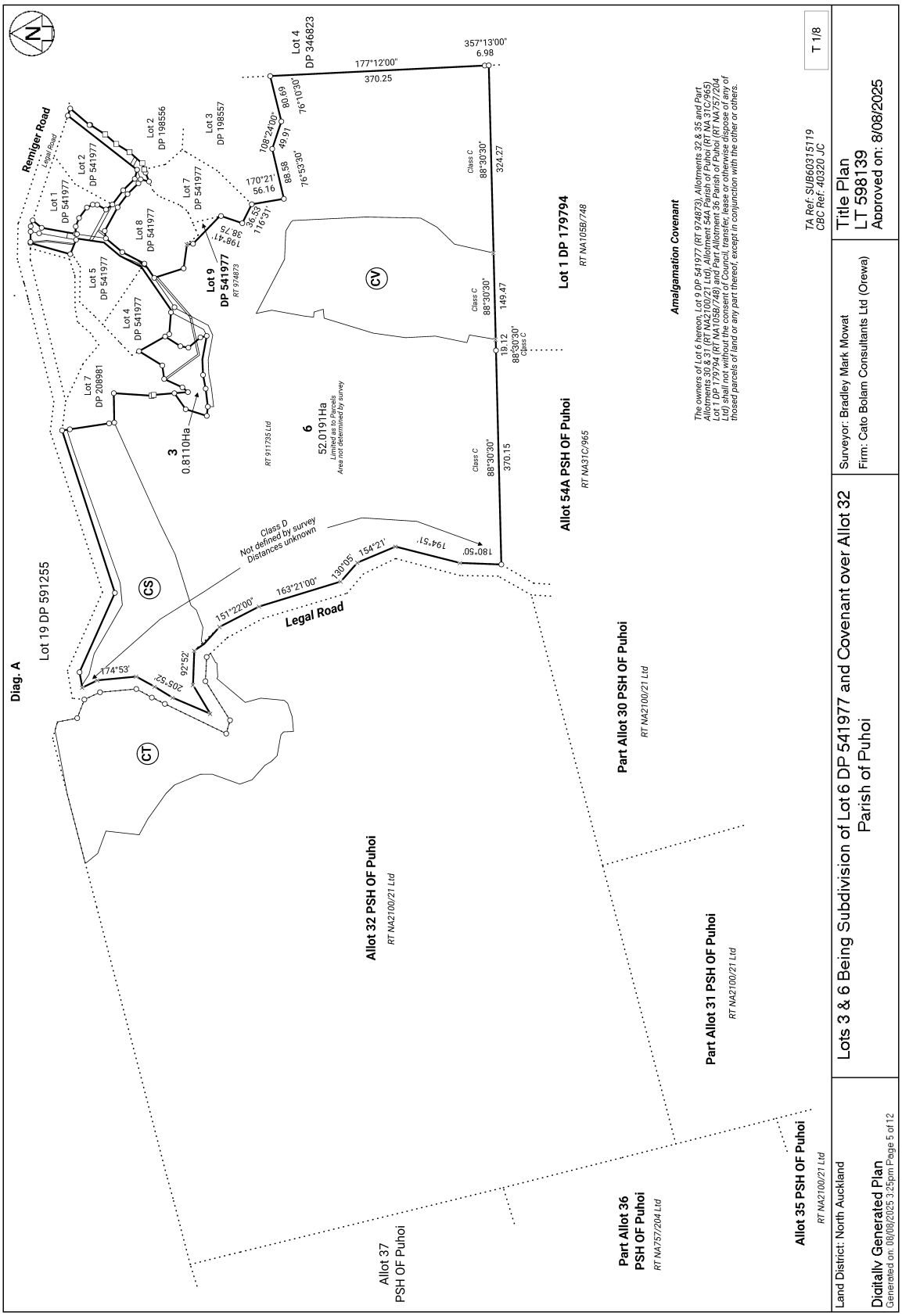
Land Covenant in Covenant Instrument 12243692.13 - 15.9.2021 at 12:21 pm

12888387.2 Consent Notice pursuant to Section 221 Resource Management Act 1991 - 23.6.2025 at 3:08 pm

12888387.3 COVENANT UNDER SECTION 240 RESOURCE MANAGEMENT ACT 1991 (ALSO AFFECTS 974873, NA105B/748, NA2100/21, NA31C/965 and NA757/204) - 23.6.2025 at 3:08 pm

Subject to a right of way, right to convey water, electricity and telecommunications over part marked EE, EA, G, EB, NA, U, EC, O, ED, EF, EG, Y and YC on DP 598139 created by Easement Instrument 12888387.4 - 23.6.2025 at 3:08 pm

The easements created by Easement Instrument 12888387.4 are subject to Section 243 (a) Resource Management Act 1991


Remiger Road
Legal Road
Lot 1 DP 541977
Lot 2 DP 541977
Lot 2 DP 198556
Lot 3 DP 198557
Lot 4 DP 346823
Lot 7 DP 541977
Lot 8 DP 541977
Lot 5 DP 541977
Lot 4 DP 541977
Lot 7 DP 208981
Lot 9 DP 541977
RT 974873
Lot 19 DP 591255
Diag. A
3
0.8110Ha
RT 911735 Ltd
6
52.0191Ha
Limited as to Parcels
Area not determined by survey
Class D
Not defined by survey
Distances unknown
Legal Road
CS
CT
CV
Class C
Allot 54A PSH OF Puhoi
RT NA31C/965
Lot 1 DP 179794
RT NA1058/748
Part Allot 30 PSH OF Puhoi
RT NA2100/21 Ltd
Part Allot 31 PSH OF Puhoi
RT NA2100/21 Ltd
Allot 32 PSH OF Puhoi
RT NA2100/21 Ltd
Allot 35 PSH OF Puhoi
RT NA2100/21 Ltd
Part Allot 36
PSH OF Puhoi
RT NA757/204 Ltd
Allot 37
PSH OF Puhoi
Amalgamation Covenant
The owners of Lot 6 hereon, Lot 9 DP 541977 (RT 974873), Allotments 32 & 35 and Part Allotments 30 & 31 (RT NA2100/21 Ltd), Allotment 54A Parish of Puhoi (RT NA 31C/965), Lot 1 DP 179794 (RT NA1058/748) and Part Allotment 36 Parish of Puhoi (RT NA757/204 Ltd) shall not without the consent of Council, transfer, lease or otherwise dispose of any of those parcels of land or any part thereof, except in conjunction with the other or others.
TA Ref: SUB60315119
CBC Ref: 40320 JC
T 1/8
Lots 3 & 6 Being Subdivision of Lot 6 DP 541977 and Covenant over Allot 32
Parish of Puhoi
Surveyor: Bradley Mark Mowat
Firm: Cato Bolam Consultants Ltd (Orewa)
Title Plan
LT 598139
Approved on: 8/08/2025
Land District: North Auckland
Digitally Generated Plan
Generated on: 08/08/2025 3:25pm Page 5 of 12

RECORD OF TITLE
UNDER LAND TRANSFER ACT 2017
FREEHOLD

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R.W. Muir
Registrar-General
of Land

Identifier	**NA31C/965**
Land Registration District	**North Auckland**
Date Issued	02 September 1975

Prior References
NA1111/288

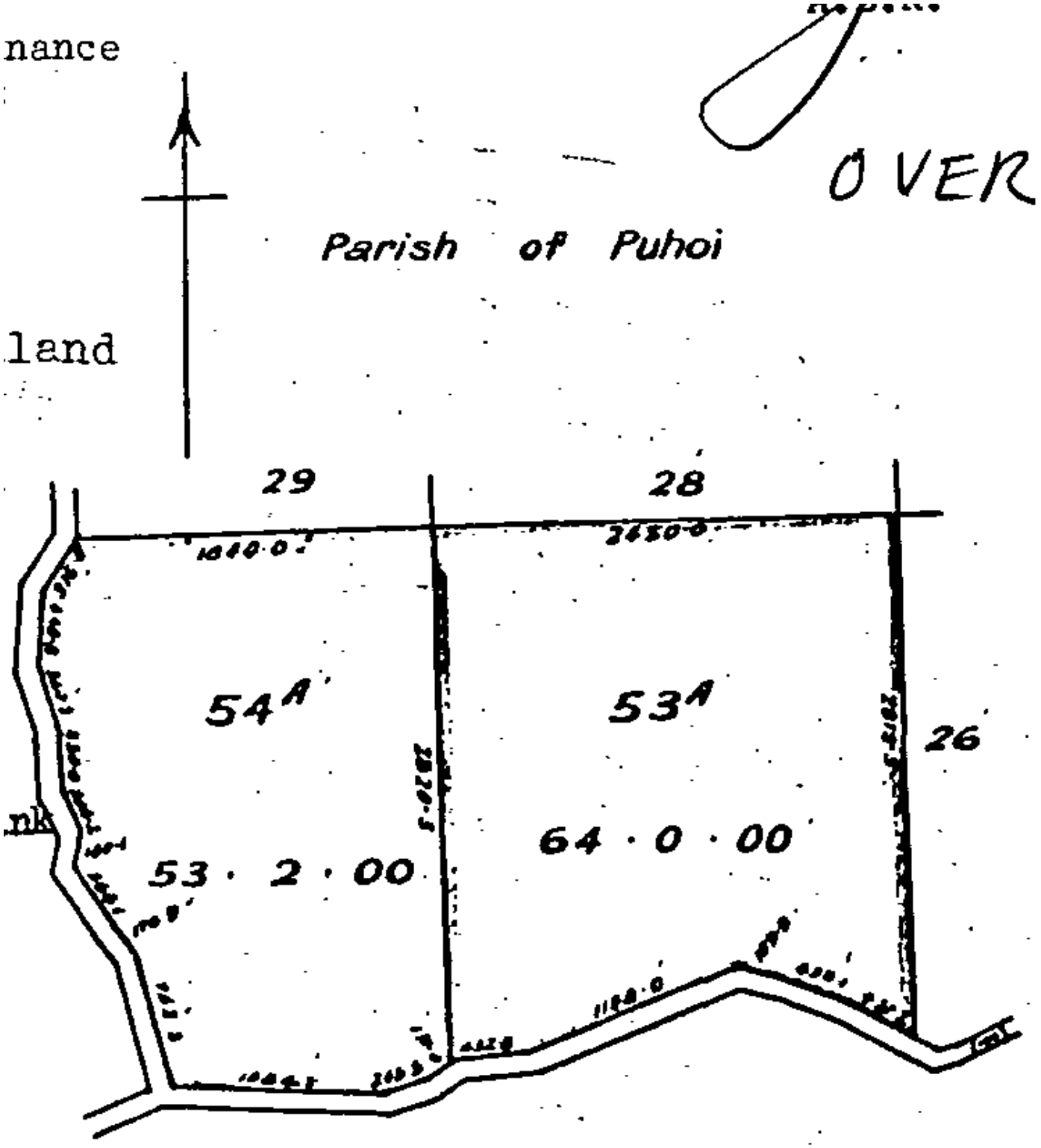
Estate	Fee Simple
Area	21.6507 hectares more or less
Legal Description	Allotment 54A Parish of Puhoi

Registered Owners
Raymond Charles Nicklin as to a 1/2 share
Desma Elizabeth Nicklin as to a 1/2 share

Interests

Subject to Section 59 Land Act 1948

12888387.3 COVENANT UNDER SECTION 240 RESOURCE MANAGEMENT ACT 1991 (ALSO AFFECTS 1159734, 974873, NA105B/748, NA2100/21 and NA757/204) - 23.6.2025 at 3:08 pm


nance
OVER
Parish of Puhoi
land
29
28
54A
53A
26
64 · 0 · 00
53 · 2 · 00

RECORD OF TITLE
UNDER LAND TRANSFER ACT 2017
FREEHOLD

Search Copy

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Registrar-General
of Land

Identifier	**NA105B/748**
Land Registration District	**North Auckland**
Date Issued	19 December 1996

Prior References
NA31C/964

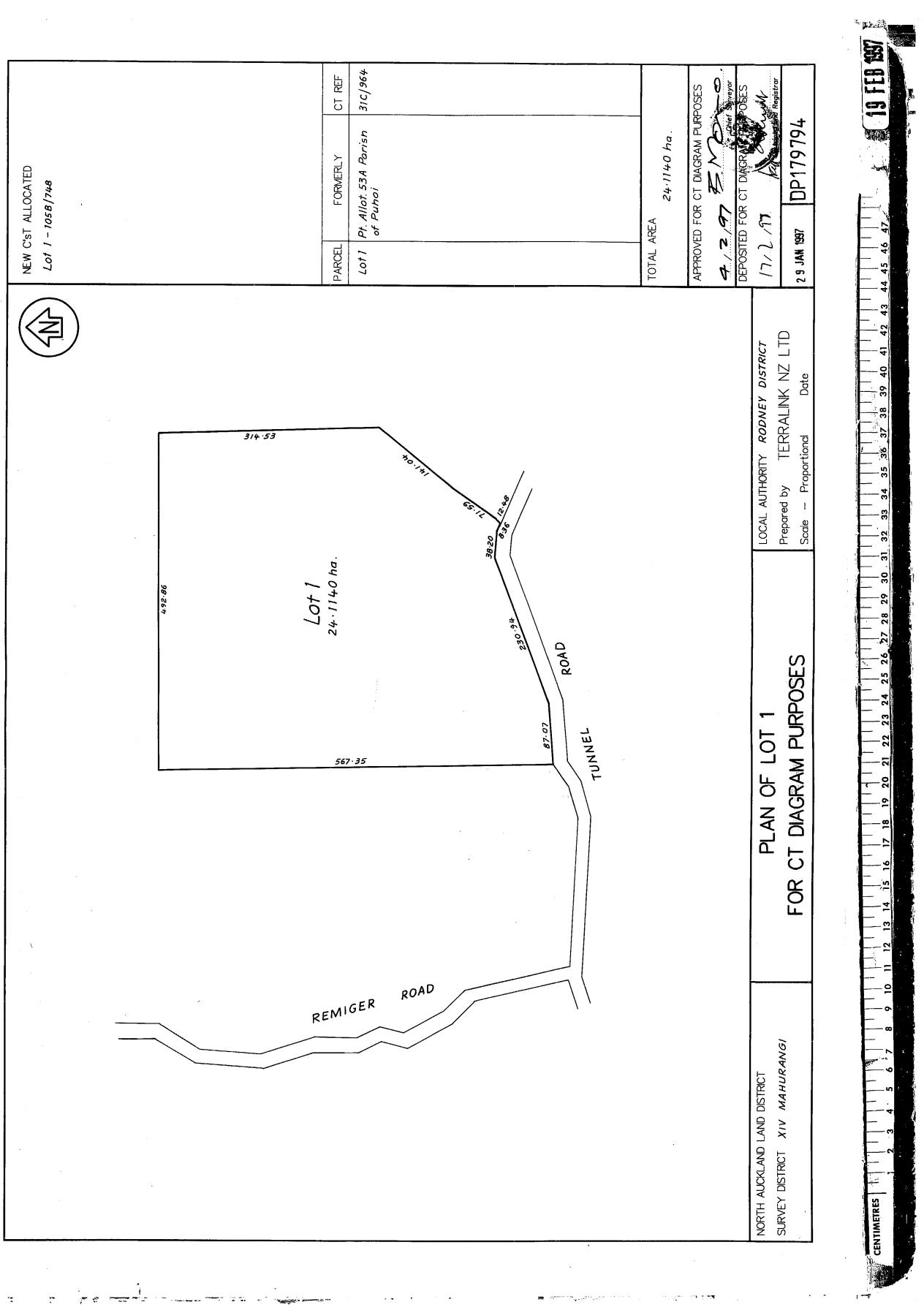
Estate	Fee Simple
Area	24.1140 hectares more or less
Legal Description	Lot 1 Deposited Plan 179794
Registered Owners	

Raymond Charles Nicklin and Desma Elizabeth Nicklin

Interests

Subject to Section 59 Land Act 1948

12888387.3 COVENANT UNDER SECTION 240 RESOURCE MANAGEMENT ACT 1991 (ALSO AFFECTS 1159734, 974873, NA2100/21, NA31C/965 and NA757/204) - 23.6.2025 at 3:08 pm


NEW C'ST ALLOCATED
Lot 1 - 105B/748
PARCEL
FORMERLY
CT REF
Lot 1
Pt. Allot. 53A Parish of Punoi
31C/964
TOTAL AREA
24.1140 ha.
APPROVED FOR CT DIAGRAM PURPOSES
4.2.97
Chief Surveyor
DEPOSITED FOR CT DIAGRAM PURPOSES
17/2/97
Land Registrar
29 JAN 1997
DP179794
Lot 1
24.1140 ha.
314.53
40.141
65.72
12.48
8.36
38.20
230.94
87.07
567.35
492.86
ROAD
TUNNEL
REMIGER ROAD
PLAN OF LOT 1
FOR CT DIAGRAM PURPOSES
NORTH AUCKLAND LAND DISTRICT
SURVEY DISTRICT XIV MAHURANGI
LOCAL AUTHORITY RODNEY DISTRICT
Prepared by TERRALINK NZ LTD
Scale - Proportional Date
19 FEB 1997
CENTIMETRES

RECORD OF TITLE
UNDER LAND TRANSFER ACT 2017
FREEHOLD
Limited as to Parcels
Search Copy

R.W. Muir
Registrar-General
of Land

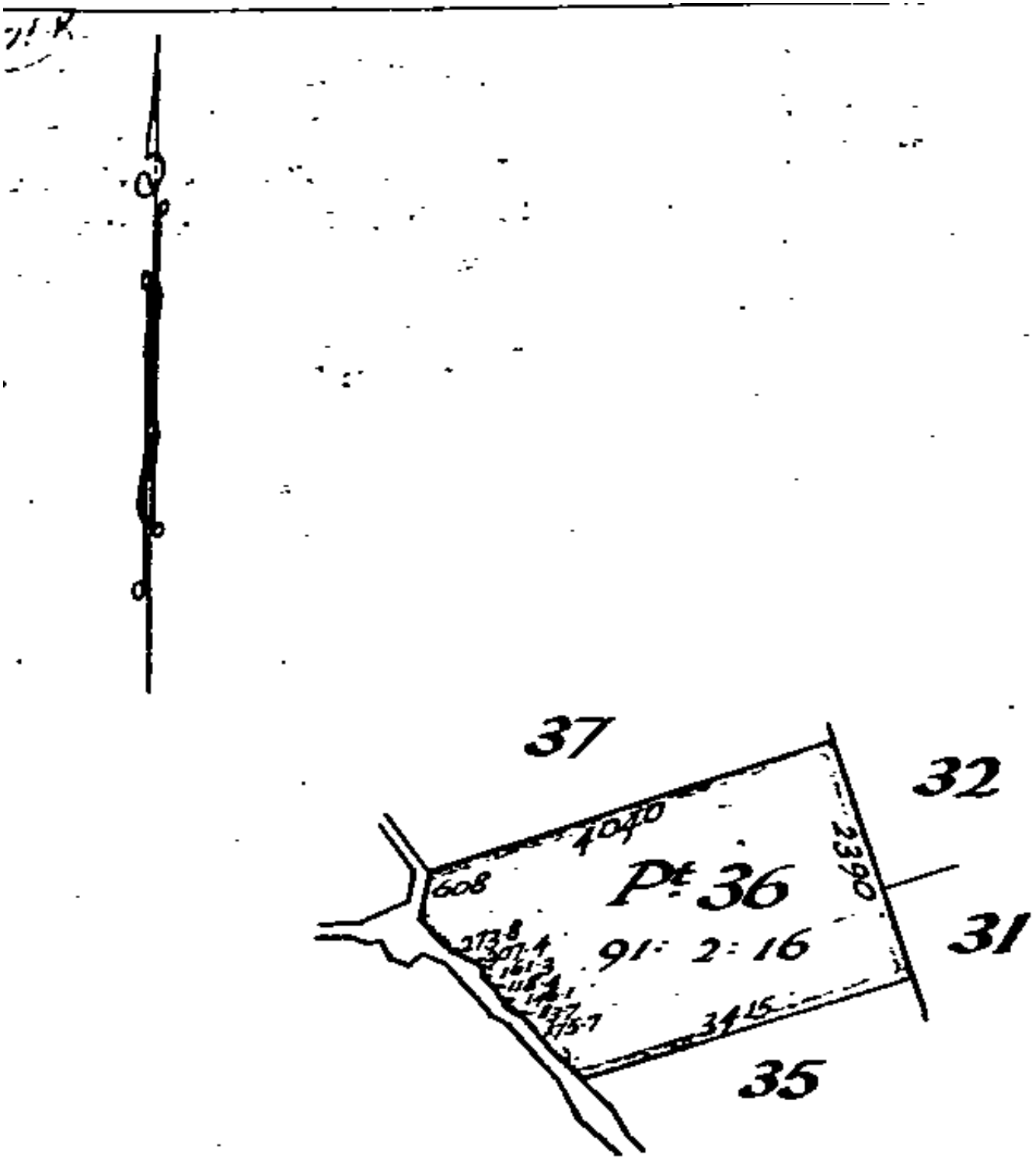
Identifier **NA757/204**
Land Registration District **North Auckland**
Date Issued 21 September 1939

Prior References
DI 8B.692

Estate Fee Simple
Area 37.0692 hectares more or less
Legal Description Part Allotment 36 Parish of Puhoi
Registered Owners
Raymond Charles Nicklin as to a 1/2 share
Desma Elizabeth Nicklin as to a 1/2 share

Interests

12888387.3 COVENANT UNDER SECTION 240 RESOURCE MANAGEMENT ACT 1991 (ALSO AFFECTS 1159734, 974873, NA105B/748, NA2100/21 and NA31C/965) - 23.6.2025 at 3:08 pm


37
32
1040
2390
608
Pt 36
91: 2: 16
31
35

RECORD OF TITLE
UNDER LAND TRANSFER ACT 2017
FREEHOLD
Limited as to Parcels
Search Copy

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Registrar-General
of Land

Identifier **NA2100/21** **Part-Cancelled**

Land Registration District **North Auckland**

Date Issued 05 November 1962

Prior References
NA757/202

Estate	Fee Simple
Area	229.2180 hectares more or less
Legal Description	Allotment 29, 32, 35 Parish of Puhoi and Part Allotment 28, 30-31 Parish of Puhoi

Registered Owners

Raymond Charles Nicklin as to a 1/2 share

Desma Elizabeth Nicklin as to a 1/2 share

Interests

Subject to an electricity right (in gross) over part marked B on DP 159737 in favour of (now) Vector Limited created by Transfer C640690.1 - 15.8.1994 at 9.17 am

D460766.3 CTs NA127B/896, NA127B/898-899 issued for part Lots 1, 5, and 8 DP 198556 -produced 9.12.1999 at 12:34 pm and entered 1.2.2000 at 9:00 am

6170820.1 Certificate pursuant to Section 223 Resource Management Act 1991(affects DP 208981) - 5.10.2004 at 9:00 am

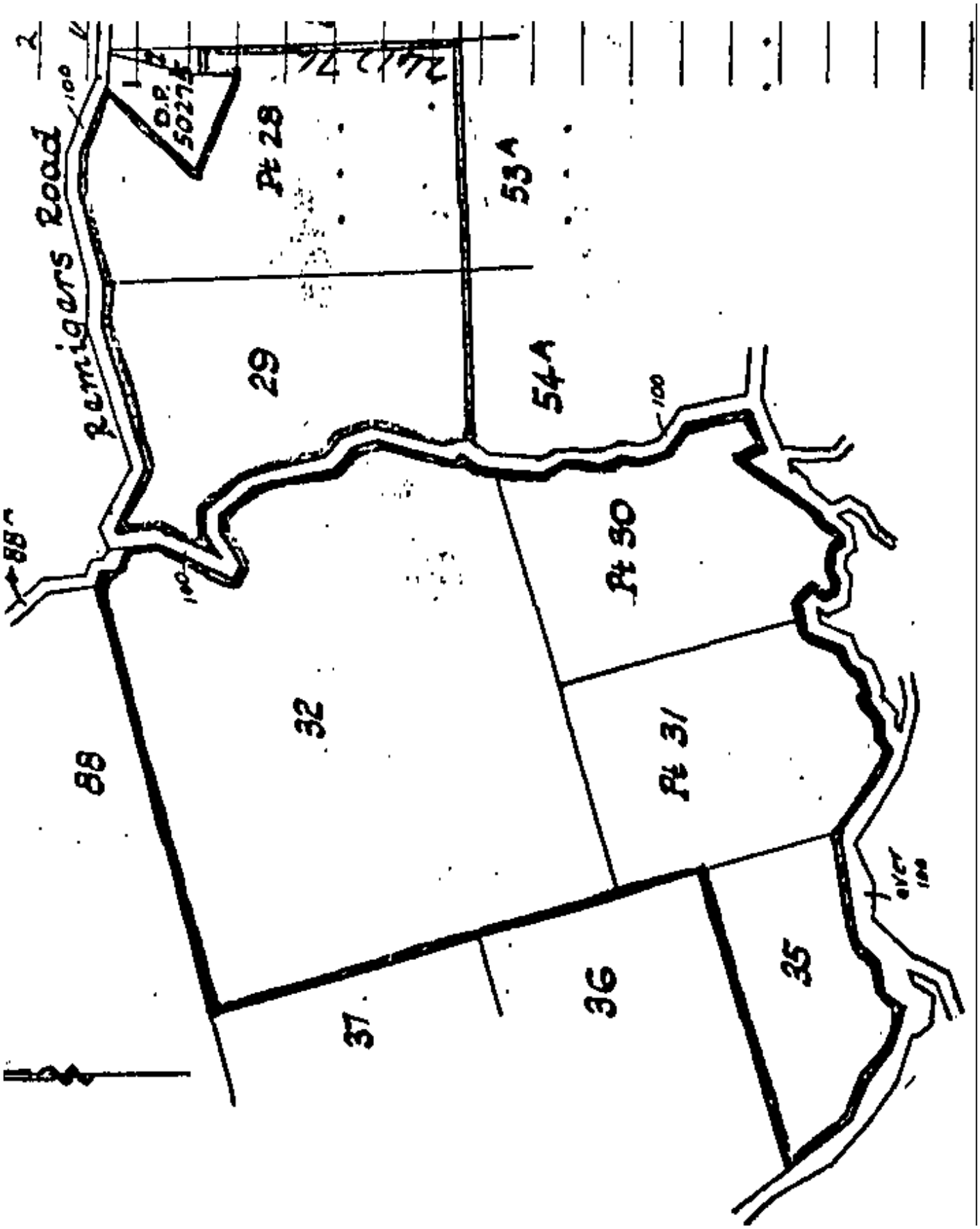
6170820.2 Certificate pursuant to Section 224(c) Resource Management Act 1991 (affects DP 208981 - 5.10.2004 at 9:00 am

6170820.3 Consent Notice pursuant to Section 221 Resource Management Act 1991 - 5.10.2004 at 9:00 am (affects Lot 6 DP 208981)

6170820.8 CTs issued - 5.10.2004 at 9:00 am

Legal Description	**Title**
Lot 6 Deposited Plan 208981	NA137A/504
Lot 7 Deposited Plan 208981	NA137A/505
Lot 8 Deposited Plan 208981	NA137A/506

12888387.3 COVENANT UNDER SECTION 240 RESOURCE MANAGEMENT ACT 1991 (ALSO AFFECTS 1159734, 974873, NA105B/748, NA31C/965 and NA757/204) - 23.6.2025 at 3:08 pm


Remigers Road
O.P. 50274
Pt 28
53A
29
54A
Pt 30
32
Pt 31
88
37
36
35